

THE NCA HUB

Examination Preparation

CANADIAN EVIDENCE LAW

PRACTICE QUESTIONS & MODEL ANSWERS

12 Examination-Grade Questions | Complete IRAC Model Answers | Examiner's Guides

Revised April 2025 Syllabus | Exam Date: April 14, 2026

Companion to: NCA Evidence Law Strategic Notes & Exam Templates

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HOW TO USE THESE PRACTICE QUESTIONS

These 12 practice questions are designed to match the complexity, depth, and format of actual NCA Evidence Law examination questions. Each question features a rich fact pattern, sub-questions of varying mark values, an Examiner's Guide identifying the issues and required cases, and a comprehensive IRAC model answer.

How to Practice

1. Read the fact pattern carefully. Note: the names of the parties, the dates and times, the specific statements made, and the nature of the evidence in dispute. These details are not decoration — they are the raw material for your application analysis.
2. Attempt the question under timed conditions. Use the time guide provided (approximately 1.8 minutes per mark). Set a timer. Write in full sentences — the NCA exam requires full-sentence answers, not point form.
3. Compare your answer to the model answer. Focus on: Did you identify all the issues? Did you cite the correct cases? Did you apply each element of the test to the specific facts? Did you address both criminal and civil dimensions where required?
4. Identify gaps and return to the Strategic Notes and Templates. Each gap represents a topic to review before the exam.
5. Repeat until your answer structure and content matches the model — especially on the highest-frequency topics (hearsay, confessions, W(D), character evidence, civil standard of proof).

Key Exam Parameters

PARAMETER	DETAIL
Format	Open-book. Hard copy only — no electronic devices, no laptops, no tablets.
Duration	3 hours (180 minutes)
Pass Mark	50% — pass/fail grading system
Structure	Approx. 30 MC questions (60 marks) + short-answer questions (40+ marks)
Mark Rate	Approximately 1.8 minutes per mark. A 25-mark question = 45 minutes.
Key Skill	Rapid issue identification + systematic rule application + fact-specific analysis. Description of rules without analysis scores zero.

Time Allocation Guide

MARK VALUE	TIME ALLOCATION	STRATEGY
10 marks	18 minutes	2-3 issues. One IRAC per issue. Cite 2-3 cases.
15 marks	27 minutes	3-4 issues. Full IRAC per issue. Cite 3-4 cases.
20 marks	36 minutes	4-5 issues. Full IRAC per issue. Address both sides.
25 marks	45 minutes	Multi-part. Full IRAC per sub-question. Address witness credibility.
30 marks	54 minutes	Complex multi-issue. All elements. All cases. Conclusion on each issue.

⚠ EXAM TIP — THE NCA EVIDENCE EXAM IS OPEN-BOOK — BUT THAT CHANGES NOTHING

Open-book means examiners expect PRECISION. Because your notes are in front of you, they expect you to cite the correct case, cite the correct test, and apply each element to the facts. Vague answers ('the statement may be hearsay') score nothing. Precise answers ('Because [DECLARANT]'s statement was made outside the proceedings and is tendered for the truth of its contents, it is hearsay — apply the principled approach from *R v Khelawon* [2006]') score marks. Use these practice questions to build the reflex of precise, structured analysis.

Table of Contents — 12 Practice Questions

QUESTION	TOPIC	MARKS	TIME
Q1	Hearsay — Principled Approach + KGB (Criminal)	25 marks	45 min
Q2	Confessions — Oickle + s.10(b) Charter + Grant s.24(2)	25 marks	45 min
Q3	Character Evidence — Good Character + Similar Fact Evidence (Handy)	20 marks	36 min
Q4	Sexual Activity Evidence — Section 276 CC (TWW 2024)	15 marks	27 min
Q5	Expert Opinion — Mohan + Abbey + Independence (JN v CG 2023)	20 marks	36 min
Q6	Privilege — Solicitor-Client + Smith v Jones + Third-Party Records	20 marks	36 min
Q7	W(D) Framework + Credibility + Eyewitness Identification (Hibbert)	20 marks	36 min
Q8	Civil Evidence — BOP + Adverse Inference + Prior Criminal Findings	15 marks	27 min
Q9	Prior Inconsistent Statements — s.9 CEA + KGB + Browne v Dunn	20 marks	36 min
Q10	Witnesses — Competence (s.16.1 CEA) + Compellability + s.5 CEA	15 marks	27 min
Q11	Multi-Issue — Hearsay + Confessions + Grant (Combined Criminal)	30 marks	54 min
Q12	Full Civil Evidence — Racial Profiling Action (Civil Rules)	30 marks	54 min

CRITICAL EXAM WARNINGS — READ BEFORE ATTEMPTING ANY QUESTION

⚠ WARNING — WARNING 1 — ALWAYS STATE THE PROCEEDING TYPE FIRST

The NCA Evidence exam regularly tests both criminal and civil evidence — and the rules differ. Before analyzing any evidentiary issue, state: 'This is a [criminal / civil] proceeding, and therefore the following rules apply...' The standard of proof (BARD vs BOP), the W(D) framework (criminal only), spousal compellability, prior conviction and acquittal rules, exclusionary discretion, and Charter exclusion ALL differ between criminal and civil proceedings. Failing to distinguish them is the most common cause of failed Evidence exam answers.

⚠ WARNING — WARNING 2 — DESCRIPTION OF RULES WITHOUT APPLICATION SCORES ZERO

The NCA exam instructions state: 'Those who merely list the issues and describe legal rules without demonstrating how they apply in the factual context presented will not succeed.' Every rule statement must be followed by a sentence beginning 'On these facts...' or 'Because [SPECIFIC FACT]...' connecting the rule to the specific facts given. Never end your answer at the rule. Always apply.

⚠ WARNING — WARNING 3 — W(D) IS MANDATORY IN ALL CRIMINAL CREDIBILITY QUESTIONS

Whenever the accused testifies in a criminal case or defence evidence conflicts with the Crown's case, the W(D) framework (R v W(D) [1991] 1 SCR 742) is mandatory. W(D) does NOT apply in civil proceedings. Failure to apply W(D) in a criminal credibility question will cost you significant marks. Apply all three questions explicitly.

⚠ WARNING — WARNING 4 — KGB IS NOT THE DEFAULT HEARSAY RULE FOR PRIOR STATEMENTS

KGB (R v B(KGB) [1993]) allows prior inconsistent statements to be admitted for the TRUTH of their contents — but only where specific conditions are met: (1) made under oath, (2) videotaped, (3) witness available for cross-examination. Without KGB conditions, the prior statement goes to CREDIBILITY ONLY (impeachment). Many candidates wrongly apply KGB to all prior statements. Always check whether the KGB conditions are met before concluding a prior statement is admissible for truth.

⚠ WARNING — WARNING 5 — TIME MANAGEMENT IS NON-NEGOTIABLE

15-mark questions: 27 minutes. 20-mark questions: 36 minutes. 25-mark questions: 45 minutes. 30-mark questions: 54 minutes. Stop writing when time is up. Partial but competent coverage across all questions scores higher than one brilliant answer and several incomplete ones. You need 50% to pass — not perfection.

HOW TO WRITE A COMPLETE NCA EVIDENCE LAW ANSWER

Issue

State the precise evidentiary issue in one sentence: 'The issue is whether [specific evidence] is admissible in this [criminal / civil] proceeding and, if so, for what purpose.' Where there are multiple issues (e.g., a confession AND a Charter issue), identify all issues briefly at the start, then address each in a separate IRAC block.

Rule

State the complete test with the leading authority. Cite the case by name and SCR citation. State each element of the test. Do not summarize — state the rule precisely. The examiner marks element by element.

Application

Apply EVERY element of the test to the SPECIFIC facts. Use the word 'because' to link the rule to the fact. Address both the strengths of the position and the weaknesses. Where witness credibility is relevant, address it. Where the criminal-civil distinction matters, flag it. Where a limiting instruction is required, state it.

Conclusion

State a clear conclusion on the specific issue. Then state: (1) whether the evidence is admissible; (2) for what purpose; (3) whether a limiting instruction is required; and (4) what weight the trier of fact should give it.

QUESTION 1 OF 12

Primary Topic	Hearsay Evidence — Principled Approach and KGB
Secondary Topics	Prior inconsistent statements, party admissions, dying declaration
Difficulty	Hard
Suggested Time	45 Minutes
Mark Value	25 Marks

FACT PATTERN

On the evening of November 3, 2025, Dmitri Volkov was fatally stabbed in an alley behind a Toronto nightclub. The sole witness was Priya Bains, a 28-year-old bartender at the club. Priya gave a detailed videotaped statement to Detective Okonkwo the following morning. In the statement, made under oath and with a warning that false statements may result in criminal charges, Priya stated: 'I saw Marcus Reid grab Dmitri from behind and stab him twice in the chest. I was standing by the back door, about four metres away. The alleyway light was on. I saw his face clearly — it was Marcus. I've known him for two years. He's a regular at the bar.'

Marcus Reid was arrested and charged with first-degree murder. Detective Okonkwo also found that Dmitri, while being loaded into the ambulance, whispered to paramedic Sanjay Mehta: 'Marcus did this. Tell my family.' Dmitri lost consciousness and died in hospital four hours later from his stab wounds. He had been conscious and lucid when speaking to Sanjay, but had lost significant blood.

At trial, Priya testifies completely differently. She states: 'I saw two people struggling in the alley but it was dark and I couldn't see their faces. I don't know who did it.' She denies making the prior statement. When the Crown shows her the videotape, she says: 'That's my voice, but I must have been confused. I was shaken up. I don't think that's really what I saw.'

Marcus's trial counsel also brings evidence that, three weeks before the stabbing, Marcus sent a text message to his friend Jordan (who is present at trial): 'Dmitri has been harassing my sister at work. I'm going to sort this out once and for all.' Crown counsel seeks to tender this text message.

Marcus Reid does not testify.

YOUR TASK:

6. (a) Is Priya's videotaped prior statement admissible? For what purpose? What conditions must be met and are they met here? (10 marks)
7. (b) Is Dmitri's statement to paramedic Sanjay Mehta admissible? Identify all relevant bases for admission and apply them to the facts. (10 marks)
8. (c) Is Marcus's text message to Jordan admissible, and for what purpose? (5 marks)

EXAMINER'S GUIDE

Issues this question tests: Principled approach to hearsay (Khan/Khelawon); KGB prior inconsistent statement conditions; s.9 CEA hostile/adverse witness procedure; dying declaration exception; res gestae / spontaneous utterances; party admissions (direct admission).

Cases a complete answer MUST cite: R v Khan [1990] 2 SCR 531; R v Khelawon [2006] 2 SCR 787; R v B(KGB) [1993] 1 SCR 740; R v Nurse 2019 ONCA 260; R v Dion 2025 ONCA 7.

Time allocation: (a) 18 min | (b) 18 min | (c) 9 min.

MODEL ANSWER — QUESTION 1**Part (a) — Priya's Videotaped Prior Statement (10 marks)****ISSUE**

The issue is whether Priya Bains's prior videotaped statement identifying Marcus Reid as the killer is admissible at trial, and whether it can be used for the truth of its contents (substantive evidence) or only to impeach Priya's credibility.

RULE

Priya's trial testimony contradicts her prior statement — creating a prior inconsistent statement (PIS). At common law, a PIS admitted under ss.10-11 CEA goes to CREDIBILITY ONLY. The jury can use it to assess whether Priya is a reliable witness, but CANNOT treat it as proof that what she said before is what actually happened.

However, R v B(KGB) [1993] 1 SCR 740 establishes a principled exception: a prior inconsistent statement may be admitted for the TRUTH of its contents when the principled approach (necessity + threshold reliability) is satisfied through the following conditions: (1) the statement was made UNDER OATH or solemn affirmation; (2) the making of the statement was VIDEOTAPED; (3) the witness is available for CROSS-EXAMINATION at trial about the prior statement.

Additionally, s.9 CEA requires a voir dire before the Crown can cross-examine its own hostile witness on the prior statement (R v Rose [1991] ONCA).

R v Khelawon [2006] 2 SCR 787 confirms: THRESHOLD reliability (not ultimate reliability) is the standard at the admissibility stage.

APPLICATION — Necessity

Because Priya is physically present at trial but has recanted — testifying inconsistently with her prior statement — she is 'practically unavailable' as a witness for the evidence her prior statement contains. The evidence of what she actually saw on the night in question is no longer available through ordinary testimony. Necessity is established through Priya's recantation.

APPLICATION — KGB Conditions — Threshold Reliability

CONDITION 1 — Under Oath: Because Priya's videotaped statement was made under oath, with a warning that false statements may result in criminal charges, the oath/affirmation condition is satisfied. This provides a procedural substitute for the usual safeguard of testifying under oath.

CONDITION 2 — Videotaped: Because the making of the statement was videotaped in its entirety, the trier of fact can observe Priya's demeanour, tone, and manner when making the statement — providing an additional safeguard equivalent to in-court presence. The videotaping condition is met.

CONDITION 3 — Cross-Examination Available: Because Priya is present at trial and can be cross-examined about the prior statement — including being confronted with the videotape and asked why she testified differently — the opportunity to cross-examine is available. This condition is met.

APPLICATION — Admissible Use

Because all three KGB conditions are satisfied, Priya's prior statement is admissible for the TRUTH of its contents. The jury may treat the prior statement as substantive evidence that Marcus Reid committed the stabbing. However, the trier of fact must also assess why Priya is now testifying differently — whether her recantation reflects a genuine change in recollection, fear of the accused, or an attempt to undermine the prosecution.

Procedure: Before the Crown can cross-examine Priya on the prior statement, a voir dire is required under s.9 CEA. At the voir dire (jury excused), the judge views the videotape and determines whether Priya is 'adverse' — whether her current testimony is materially inconsistent with her prior statement in a way that justifies s.9 leave. Here, the inconsistency is material and obvious. Leave will be granted.

CONCLUSION

Priya's prior videotaped statement IS admissible at trial for the truth of its contents. Because the KGB conditions are satisfied — the statement was made under oath, was videotaped, and Priya is available for cross-examination — necessity and threshold reliability are established under the principled approach (Khelawon). The jury may treat the statement as evidence that Marcus Reid committed the stabbing. A limiting instruction should explain the circumstances of the prior statement and the subsequent recantation.

Part (b) — Dmitri's Statement to Sanjay Mehta (10 marks)

ISSUE

The issue is whether Dmitri Volkov's statement to paramedic Sanjay Mehta — 'Marcus did this. Tell my family' — is admissible hearsay. Two potential bases for admission exist: the dying declaration exception and the principled approach (necessity + reliability).

RULE

BASIS 1 — DYING DECLARATION (Common Law): A dying declaration is admissible in criminal homicide proceedings where ALL FOUR conditions are met: (1) the declarant knew they were dying and had a settled, hopeless expectation of death; (2) the declarant had given up all hope of recovery; (3) the statement relates to the cause or circumstances of the death; (4) the declarant would have been competent to testify. (R v Nurse 2019 ONCA 260, paras 54-57, 66-76.)

BASIS 2 — PRINCIPLED APPROACH (Khan/Khelawon): If the dying declaration fails on any condition, the statement may still be admitted under the principled approach where necessity (declarant unavailable — here, dead) and threshold reliability (circumstances of trustworthiness) are established. Threshold reliability, not ultimate reliability, is the standard (Khelawon; R v Dion 2025 ONCA 7).

APPLICATION — Dying Declaration Analysis

CONDITION 1 — Knowledge of Imminent Death: This is the critical issue. Dmitri had been stabbed twice in the chest and had lost significant blood. He lost consciousness four hours later and died. However, the fact pattern states he was 'conscious and lucid' when speaking to Sanjay. The question is whether Dmitri had a SETTLED, HOPELESS expectation of death — not merely a concern he might die. Because there is no evidence Dmitri expressed belief that he was dying, or was told by medical personnel that he would not survive, this condition is questionable. A court would closely scrutinize whether Dmitri's state of consciousness and the circumstances establish the required hopeless expectation.

CONDITION 2 — No Hope of Recovery: Because Dmitri was lucid and did not express statements indicating he had abandoned all hope, this condition is not clearly met. Medical treatment was underway. A court may find this condition is not satisfied on these facts — Nurse requires strict application.

CONDITIONS 3 & 4 — Content and Competence: Dmitri's statement — 'Marcus did this' — directly identifies the cause of his death. He was lucid and coherent when speaking, establishing competence. These conditions are met.

Conclusion on Dying Declaration: Because the first two conditions — settled hopeless expectation of death — are not clearly established on these facts, the dying declaration exception may FAIL. A court would require evidence that Dmitri himself believed death was certain and imminent, not just that he was gravely injured.

APPLICATION — Principled Approach — Alternative Basis

NECESSITY: Because Dmitri died four hours after the statement, he is unavailable to testify. Necessity is clearly established — the declarant is dead.

THRESHOLD RELIABILITY — SUBSTANTIVE: The circumstances of the statement provide strong guarantees of trustworthiness: (1) the statement was made spontaneously immediately after the stabbing, while Dmitri was still at the scene; (2) there is no motive to fabricate — Dmitri had just been stabbed and was lucid; (3) the statement was specific — identifying 'Marcus' by name, not a vague reference; (4) the statement was made before Dmitri had any opportunity to consult with others or to fabricate a narrative; (5) the fact pattern provides no suggestion of any reason for Dmitri to falsely implicate Marcus.

Because necessity is established (death) and substantive threshold reliability is established (spontaneous, no motive to fabricate, specific, contemporaneous), Dmitri's statement is admissible

under the principled approach even if the dying declaration exception fails.

CONCLUSION

Dmitri's statement to Sanjay Mehta is admissible under the principled approach (Khan/Khelawon). Necessity is established by Dmitri's death. Threshold reliability is established by the spontaneous circumstances of the statement, the absence of motive to fabricate, and the specific identification made moments after the attack. The dying declaration exception is uncertain on these facts because Dmitri's settled hopeless expectation of death is not clearly established — the principled approach provides the more reliable basis for admission. The statement is admissible for the truth of its contents: that Marcus Reid stabbed Dmitri.

Part (c) — Marcus's Text Message to Jordan (5 marks)

ISSUE

The issue is whether Marcus Reid's text message to Jordan — 'Dmitri has been harassing my sister at work. I'm going to sort this out once and for all' — is admissible, and for what purpose.

RULE

A party's own out-of-court statements are admissible against that party as a PARTY ADMISSION. The hearsay exception for party admissions rests on the adversarial principle — a party cannot object to their own words being used against them. No necessity or reliability threshold is required. The admission is admissible as an exception to the hearsay rule.

APPLICATION — Party Admission — Application

Because Marcus Reid wrote the text message himself, it is a DIRECT (EXPRESS) party admission. Jordan is present at trial and can testify about receiving it. The message is tendered by the Crown against Marcus.

PURPOSE: The Crown tenders this admission to show Marcus had a motive to harm Dmitri ('I'm going to sort this out once and for all') and to support an inference of intent. The statement, made three weeks before the stabbing, is relevant to Marcus's state of mind — it tends to establish that Marcus had contemplated confronting Dmitri.

LIMITATION: The text message is admissible to establish Marcus's state of mind and possible motive — not as direct proof that he killed Dmitri. The jury must assess the weight of this evidence alongside all other evidence. A jury direction should clarify that the message goes to motive and state of mind — the inference that 'sorting it out' meant killing is circumstantial and must be assessed carefully.

CONCLUSION

Marcus's text message IS admissible as a party admission. Because Marcus himself wrote the message and it is tendered against him, the adversarial principle supports admission without requiring satisfaction of the principled approach. The message is relevant to motive and state of mind — it establishes that Marcus had contemplated confronting Dmitri. The jury must be instructed to assess the weight of this circumstantial evidence carefully: 'sorting it out' does not necessarily imply killing.

QUESTION 2 OF 12

Primary Topic	Confessions — Oickle, s.10(b) Charter, Grant s.24(2)
Secondary Topics	Voir dire procedure, Reid Technique, voluntariness, exclusion of evidence
Difficulty	Hard
Suggested Time	45 Minutes
Mark Value	25 Marks

FACT PATTERN

On January 15, 2026, 19-year-old Jamal Osei was arrested at his apartment at 6:00 AM in connection with a series of pharmacy break-ins. He was handcuffed, taken to the police station, and placed in an interrogation room. The arresting officer, Constable Park, told Jamal: 'You have the right to retain and instruct counsel without delay.' Jamal responded immediately: 'I want to call my lawyer. My uncle is a lawyer — his name is Francis Osei.' Constable Park said: 'We'll get to that — first let's just clarify a few things.' Park then proceeded to question Jamal for 40 minutes before allowing Jamal to make any phone call.

After 40 minutes of questioning (during which Jamal said nothing incriminating), Jamal was allowed to call his uncle. He spoke for ten minutes. When the call ended, Detective Reyes entered the room and began a formal interrogation. The following occurred over the next three hours:

Hour 1: Detective Reyes presented Jamal with what she described as 'security footage clearly showing you at every pharmacy.' She stated: 'We have everything we need to convict you. The only question is whether you cooperate or not. If you cooperate and tell us the full story, I'll make sure the Crown knows how helpful you were. That can make a real difference at sentencing.' Jamal said: 'I don't know what you're talking about.'

Hour 2: Detective Reyes left Jamal alone for 30 minutes. She then returned and continued: 'Look, Jamal, I understand — you needed the money. You're a good kid who made a bad decision. This doesn't have to define your life. But if you don't cooperate now, the Crown is going to push for the maximum. Help me help you.' She also told Jamal: 'Your co-accused already gave us everything. He's blaming the whole thing on you.' (The co-accused had not in fact made any statement.)

Hour 3: Jamal, who had not eaten since the previous evening and had not slept, began to cry. He said: 'Fine. I was there. I broke the windows. But I didn't take anything — the other guy did that.' This statement was videotaped.

Post-interview analysis: The 'security footage' Detective Reyes referenced does not actually exist. The co-accused had exercised his right to silence and made no statement.

YOUR TASK:

9. (a) Was Jamal's right to counsel under s.10(b) of the Charter violated? What is the significance of this for the admissibility of his statement? (8 marks)
10. (b) Applying the Oickle framework, was Jamal's statement voluntary? Address ALL relevant grounds of involuntariness. (12 marks)
11. (c) Assuming both a Charter violation and involuntariness are established, what is the appropriate remedy? Apply the Grant s.24(2) three-line test to Jamal's statement. (5 marks)

EXAMINER'S GUIDE

Issues this question tests: s.10(b) Charter — informational and implementational duties (Manninen); voluntariness — Oickle four grounds; inducements; oppression; police trickery; operating mind; Reid Technique (Ordonio 2025 ONCA 135); Grant s.24(2) three-line balancing test.

Cases a complete answer MUST cite: R v Oickle [2000] 2 SCR 3; R v Manninen [1987] 1 SCR 1233; R v Grant [2009] 2 SCR 353; R v Ordonio 2025 ONCA 135; R v Grandinetti [2005] SCC 5.

Time allocation: (a) 15 min | (b) 22 min | (c) 9 min.

MODEL ANSWER — QUESTION 2**Part (a) — Section 10(b) Charter Violation (8 marks)****ISSUE**

The issue is whether Constable Park's conduct violated Jamal's right under s.10(b) of the Charter to retain and instruct counsel without delay, and what consequences flow from that violation.

RULE

S.10(b) Charter imposes TWO components: (1) INFORMATIONAL — police must inform the accused of the right to retain and instruct counsel without delay; and (2) IMPLEMENTATIONAL — once the accused invokes the right, police must (a) cease questioning; (b) provide a reasonable opportunity to contact counsel; and (c) not take any steps to elicit incriminating information until the accused has had that opportunity.

R v Manninen [1987] 1 SCR 1233: Police must cease questioning the moment the accused requests a lawyer. Any questioning that continues after the accused invokes the right to counsel is a breach of s.10(b).

APPLICATION — Was the Informational Duty Met?

Because Constable Park informed Jamal 'You have the right to retain and instruct counsel without delay' immediately upon arrest, the informational component of s.10(b) was met. Jamal understood the right and immediately exercised it.

APPLICATION — Was the Implementational Duty Met?

Because Jamal immediately invoked the right to counsel — 'I want to call my lawyer. My uncle is a lawyer — his name is Francis Osei' — Constable Park was immediately obligated to: (a) CEASE questioning; and (b) provide Jamal with a reasonable opportunity to contact counsel.

Because Constable Park instead said 'We'll get to that — first let's just clarify a few things' and proceeded to question Jamal for 40 minutes before allowing any phone call, this is a clear violation of the implementational component of s.10(b). Park knew Jamal had invoked the right and deliberately continued questioning before providing access to counsel.

While Jamal said nothing incriminating in the first 40-minute session, the s.10(b) violation was committed. The statement ultimately made (in the third hour, after counsel was consulted) was not itself obtained during the s.10(b) violation. However, the violation potentially affected Jamal's willingness to speak and created the coercive context for the subsequent interrogation.

CONCLUSION

Constable Park's decision to continue questioning for 40 minutes after Jamal invoked the right to counsel violated s.10(b) Charter (Manninen). The implementational duty requires immediate cessation of questioning upon invocation. The violation was deliberate — Park acknowledged the request and chose to ignore it. Because Jamal made no incriminating statement during those 40 minutes, the practical impact on the admissibility of the eventual confession must be assessed under Grant s.24(2) — addressed in Part (c).

Part (b) — Oickle Voluntariness Analysis (12 marks)

ISSUE

The issue is whether Jamal's statement — 'I was there. I broke the windows. But I didn't take anything' — was voluntary, in light of the Crown's obligation to prove voluntariness BARD under the Oickle framework.

RULE

R v Oickle [2000] 2 SCR 3: A statement made to a person in authority is involuntary if the Crown fails to establish BARD that it was not the product of: (1) INDUCEMENTS (threats or promises); (2) OPPRESSION (interrogation conditions that overbore the accused's will); (3) ABSENT OPERATING MIND; or (4) POLICE TRICKERY / ABUSE OF PROCESS. The analysis considers the TOTALITY OF CIRCUMSTANCES — no single factor is determinative.

R v Ordonio 2025 ONCA 135: The Reid Technique — confrontational interrogation including false evidence claims, minimization and maximization tactics — is not per se exclusionary. But combined with oppressive conditions and a vulnerable accused, it can constitute Ground 2 (oppression) or Ground 4 (police trickery).

BARD is the Crown's standard of proof for voluntariness.

APPLICATION — Ground 1 — Inducements

Detective Reyes made explicit and implicit inducements. In Hour 1, she stated: 'If you cooperate and tell us the full story, I'll make sure the Crown knows how helpful you were. That can make a real difference at sentencing.' This is a quid pro quo inducement — cooperate and receive a sentencing benefit. In Hour 2, she stated: 'if you don't cooperate now, the Crown is going to push for the maximum' — a threat of worse consequences for silence. Both the promise of benefit (cooperation → lighter sentence) and the threat of worse consequences (silence → maximum sentence) are inducements within Ground 1.

Assessing these inducements: Would a reasonable person in Jamal's circumstances — 19 years old, sleep-deprived, three hours into interrogation — feel compelled to speak because of these inducements? Yes. The explicit promise of sentencing leniency is precisely the type of inducement that renders statements unreliable — a person may confess to obtain the promised benefit regardless

of whether they are guilty. Ground 1 appears to be made out.

APPLICATION — Ground 2 — Oppression

The interrogation conditions were progressively oppressive. By the time Jamal confessed in Hour 3, he: (1) had not eaten since the previous evening; (2) had not slept; (3) had been in police custody since 6:00 AM; (4) had been subjected to three hours of sustained interrogation with minimization, maximization, and false evidence claims; (5) was only 19 years old. When Jamal began to cry before confessing, this is a powerful indicator that his emotional and psychological state had been compromised by the conditions.

The Reid Technique elements used — confrontational presentation of false evidence ('we have security footage'), maximization ('if you don't cooperate the Crown will push for maximum'), minimization ('you're a good kid who made a bad decision') — are precisely the tactics examined in *Ordonio* 2025 ONCA 135. Applying *Ordonio*: while these tactics alone are not automatically grounds for exclusion, combined with Jamal's youth, sleep deprivation, hunger, and the prolonged three-hour interrogation, they constitute oppressive conditions that overbore his will. Ground 2 is made out.

APPLICATION — Ground 3 — Operating Mind

Jamal's responses throughout the interrogation show he understood what he was saying and the consequences. He resisted for two hours before confessing, suggesting he understood the stakes. His statement was specific: 'I was there. I broke the windows. But I didn't take anything' — a partial admission with an exculpatory addendum, showing a functioning mind capable of strategic calculation. The operating mind requirement appears to be satisfied on these facts. Ground 3 does NOT assist the defence.

APPLICATION — Ground 4 — Police Trickery / Abuse of Process

Detective Reyes made two knowingly false statements: (1) 'We have security footage clearly showing you at every pharmacy' — no such footage exists; (2) 'Your co-accused already gave us everything. He's blaming the whole thing on you' — the co-accused made no statement. These were deliberate fabrications designed to break Jamal's will. While lying to suspects about evidence is not per se a Ground 4 violation, the cumulative effect of multiple false claims of overwhelming evidence — in combination with the inducements under Ground 1 and the oppressive conditions under Ground 2 — creates a situation where the conduct was so offensive to fair play that it constitutes police trickery within Oickle's Ground 4.

CONCLUSION

Jamal's statement was NOT voluntary. The Crown cannot prove BARD that the statement was free from inducements (Ground 1 — explicit sentencing promise and threat), oppression (Ground 2 — youth, sleep deprivation, Reid Technique applied over three hours), or police trickery (Ground 4 — fabricated evidence claims). On the totality of circumstances, Jamal's will was overborne by the combined effect of these factors. The statement is inadmissible under the common law confessions rule.

Part (c) — Grant s.24(2) Analysis (5 marks)

ISSUE

The issue is whether, in addition to the common law confession rule, Jamal's statement should be excluded under s.24(2) of the Charter on the basis of the s.10(b) violation, and whether admission of the statement would bring the administration of justice into disrepute.

RULE

R v Grant [2009] 2 SCR 353: Where evidence is obtained in breach of a Charter right, s.24(2) requires exclusion if admission would bring the administration of justice into disrepute. Three lines are balanced: (1) seriousness of the Charter-infringing conduct; (2) impact on the accused's Charter-protected interests; (3) society's interest in adjudication on the merits.

APPLICATION — Grant Three-Line Analysis

LINE 1 — SERIOUSNESS OF VIOLATION: Because Constable Park DELIBERATELY chose to question Jamal for 40 minutes after Jamal clearly invoked the right to counsel — acknowledging the request and ignoring it — this is not a technical or good faith error. It is a deliberate violation of a clearly established right. This weighs strongly toward exclusion.

LINE 2 — IMPACT ON ACCUSED'S CHARTER INTERESTS: Because the right to counsel in an interrogation context goes to the heart of the accused's ability to make an informed choice about whether to speak to police, a breach of s.10(b) at the outset of custody significantly impacted Jamal's protected interests. The violation set the coercive context for the subsequent hours of interrogation. Even though Jamal said nothing incriminating in the first 40 minutes, the violation affected his understanding of his rights. This weighs strongly toward exclusion.

LINE 3 — SOCIETY'S INTEREST: The pharmacy break-ins are property offences — not crimes of violence. The statement is unreliable (obtained through oppression and inducements). Society's interest in adjudication on the merits is present but reduced given the seriousness of the offences and the unreliability of the evidence. This line weighs modestly toward admission.

BALANCE: Lines 1 and 2 strongly favour exclusion. The deliberate disregard of Jamal's clearly invoked right to counsel, combined with the coercive interrogation that followed, represents the type of state misconduct that courts must not be seen to condone. The statement should be excluded under s.24(2).

CONCLUSION

Jamal's statement is excluded under BOTH the common law confessions rule (involuntary — Oickle) AND s.24(2) of the Charter (Grant). The s.10(b) violation was deliberate and seriously impacted Jamal's ability to make an informed decision about speaking to police. Admitting the statement would send the message that courts condone deliberate violations of the right to counsel in the interrogation context. The statement must be excluded.

QUESTION 3 OF 12

Primary Topic	Character Evidence — Good Character + Similar Fact Evidence
Secondary Topics	Corbett application, criminal record, propensity evidence, Handy test
Difficulty	Medium-Hard
Suggested Time	36 Minutes

Mark Value

20 Marks

FACT PATTERN

Alicia Fontaine is charged with fraud over \$5,000 (s.380 CC) arising from allegations that she manipulated insurance claims at her employer, Meridian Insurance Group, over a period of two years. The Crown alleges Alicia created fictitious policyholder files and redirected \$185,000 in insurance payouts to bank accounts she controlled.

The Crown seeks to lead the following evidence:

- (i) Evidence that Alicia was investigated (but not charged) in 2019 for allegedly manipulating client accounts at a previous employer, a financial services firm. The investigation was closed without charges. No finding of wrongdoing was made.
- (ii) Evidence that in 2021, Alicia settled a civil suit brought against her by a former business partner who alleged she had redirected partnership funds to herself. The settlement was for \$22,000 with no admission of liability.

Alicia testifies in her own defence. She states she is innocent and denies all wrongdoing. During examination-in-chief, her counsel asks: 'Alicia, how would you describe your professional reputation?' Alicia responds: 'I've always been known for honesty and integrity in the financial industry. I've worked in finance for 12 years and never once had a formal complaint or finding against me.'

Alicia's criminal record (which she has not disclosed in her testimony) shows: (1) Theft under \$5,000 in 2010 (received a conditional discharge); (2) Fraud under \$5,000 in 2014 (received a fine of \$500).

The trial judge must resolve: (a) whether the Crown can lead evidence of the 2019 investigation and 2021 civil settlement; and (b) whether the Crown can cross-examine Alicia on her criminal record.

YOUR TASK:

12. (a) Should the Crown be permitted to lead evidence of the 2019 investigation and the 2021 civil settlement as similar fact evidence? Apply the Handy test. (12 marks)
13. (b) Should the Crown be permitted to cross-examine Alicia on her criminal record? What are the applicable rules and how should the trial judge exercise the Corbett discretion? (8 marks)

EXAMINER'S GUIDE

Issues this question tests: Good character evidence (dual purpose); Crown rebuttal when accused opens the door; SFE Handy test (all five steps); Corbett application (s.12 CEA); mandatory limiting instruction.

Cases a complete answer MUST cite: R v Handy [2002] 2 SCR 908; R v Corbett [1988] 1 SCR 670; R v McNamara (No.1) [1981] ONCA.

Time allocation: (a) 22 min | (b) 14 min.

MODEL ANSWER — QUESTION 3**Part (a) — Similar Fact Evidence (12 marks)**

ISSUE

The issue is whether the Crown may lead evidence of Alicia's prior conduct — the 2019 workplace investigation and the 2021 civil settlement — as similar fact evidence to prove the fraud charge.

RULE

The general rule: Evidence of prior bad conduct by the accused is presumptively inadmissible if tendered to prove propensity to commit the current offence.

R v Handy [2002] 2 SCR 908 — THE SFE TEST: Evidence of prior bad conduct is admissible where its PROBATIVE VALUE SUBSTANTIALLY OUTWEIGHS its PREJUDICIAL EFFECT. The court must: (1) identify a specific non-propensity purpose; (2) assess the degree of similarity (probative value); (3) assess the prejudicial effect (moral and reasoning prejudice); (4) balance — PV must SUBSTANTIALLY outweigh PE; (5) consider collusion where multiple witnesses are involved.

APPLICATION — Step 1 — Identify the Non-Propensity Purpose

The Crown's purpose is to prove IDENTITY (that Alicia is the person who committed the scheme) and to rebut a claim of MISTAKE — to show that the irregularities were not accidental errors but part of a deliberate pattern of financial manipulation.

These are legitimate, specific non-propensity purposes. The Crown is not merely saying 'Alicia has done dishonest things before, so she probably did this.' Rather, the Crown says the recurring pattern of financial manipulation in trust/employment contexts goes to identity and intent.

APPLICATION — Step 2 — Probative Value (Degree of Similarity)

THE 2019 INVESTIGATION: Significant similarities exist: (a) same type of conduct — alleged manipulation of financial accounts; (b) same employment context — financial services industry; (c) same method — alleged misappropriation of funds through account manipulation. However, important differences exist: (a) no finding of wrongdoing was made; (b) there were no charges; (c) the investigation was closed. The absence of any formal finding significantly undermines the probative value of this prior conduct. Courts will be cautious about using unproven allegations as SFE — the 'similar facts' must actually exist, and here they are contested.

THE 2021 CIVIL SETTLEMENT: Similarities: (a) similar conduct — alleged diversion of funds to herself; (b) financial context. However: (a) settled without admission of liability; (b) the settlement does not establish that Alicia committed the alleged conduct. Like the 2019 investigation, the probative value is significantly undermined by the absence of any finding of wrongdoing.

APPLICATION — Step 3 — Prejudicial Effect

The prejudicial effect of this evidence is high: (a) MORAL PREJUDICE — the jury may learn that Alicia has a long history of financial dishonesty and convict on that basis rather than on proof of this charge; (b) REASONING PREJUDICE — the evidence of the two prior matters will require satellite mini-trials into what actually happened in 2019 and 2021, consuming significant trial time and distracting the jury. The lack of any formal finding amplifies the prejudice — Alicia would be judged on unproven allegations.

APPLICATION — Step 4 — Balance

Under Handy, probative value must SUBSTANTIALLY outweigh prejudicial effect. Here: (a) the probative value is significantly reduced because there are no findings of wrongdoing in either prior matter — they are unproven allegations; (b) the prejudicial effect is high — the jury may convict Alicia on the basis of a pattern of dishonesty that has never been established. The balance does not favour admission. The probative value of two unproven allegations does not substantially outweigh the prejudicial effect of exposing the jury to evidence that Alicia has twice before been investigated or sued for financial impropriety. Both items of SFE should be excluded.

CONCLUSION

The Crown should NOT be permitted to lead the 2019 investigation or the 2021 civil settlement as similar fact evidence. Because no finding of wrongdoing was made in either case, the probative value of the 'similar facts' is significantly diminished — the conduct itself was never established. The prejudicial effect — exposing the jury to unproven allegations of financial dishonesty — substantially exceeds the probative value. The Handy test is not satisfied. Both items should be excluded.

Part (b) — Corbett Application: Criminal Record (8 marks)

ISSUE

The issue is whether the Crown should be permitted to cross-examine Alicia on her prior criminal record (theft 2010, fraud 2014) under s.12 CEA, and how the trial judge should exercise the Corbett discretion.

RULE

S.12 CEA: Where the accused testifies, they may be cross-examined on their prior criminal record. The record goes to CREDIBILITY ONLY — not to propensity to commit the current offence.

R v Corbett [1988] 1 SCR 670: The trial judge has a residual discretion to exclude or sanitize the record where its prejudicial effect substantially outweighs its probative value on credibility. Factors: (1) nature of the convictions — crimes of dishonesty are most probative; (2) similarity to the current charge — the more similar, the more prejudicial; (3) age of the convictions; (4) whether credibility is genuinely in issue.

CRITICAL ADDITIONAL FACTOR — DOOR OPENED: By testifying that she has 'always been known for honesty and integrity' and has 'never had a formal complaint or finding,' Alicia has put her good character in issue. Under R v McNamara (No.1), once the accused opens the door to good character, the Crown is entitled to rebut. This strengthens the Crown's entitlement to cross-examine on the record.

MANDATORY LIMITING INSTRUCTION: If the record is admitted, the jury must be told the record goes only to credibility — not as proof Alicia committed this offence.

APPLICATION — Corbett Analysis — Each Conviction

CONVICTION 1 — Theft under \$5,000 (2010, conditional discharge): The conditional discharge means Alicia is deemed not to have been convicted — s.12 CEA and the Corbett discretion apply to convictions. Because a conditional discharge technically results in a deemed acquittal after successful completion, the court must determine whether it qualifies as a prior 'conviction' for s.12 purposes. The safer analysis treats it as a conviction for these purposes. In terms of Corbett factors: theft is a crime

involving dishonesty (probative of credibility); the conviction is 16 years old (low probative value on credibility); it is somewhat similar to the current fraud charge (some prejudice).

CONVICTION 2 — Fraud under \$5,000 (2014, fine): This conviction is directly relevant to credibility. Fraud is a crime of dishonesty that is directly probative of whether Alicia is a truthful witness. However, the similarity to the current charge is HIGH — this is also a fraud charge. This means the prejudicial effect is significant: the jury may reason 'she was convicted of fraud before, so she probably committed fraud now.' This is the prohibited propensity inference.

ADDITIONAL FACTOR — DOOR OPENED: Because Alicia testified to her good character for honesty and integrity and stated she has never had a formal complaint, the Crown is entitled to rebut this directly. The fraud conviction from 2014 directly contradicts Alicia's claim of unblemished professional history. Allowing the Crown to cross-examine on this conviction is appropriate to rebut the false impression Alicia has created.

CONCLUSION

The trial judge should exercise the Corbett discretion as follows: Because Alicia opened the door to good character evidence by testifying to her honesty and integrity, the Crown is entitled to rebut. The 2014 fraud conviction (a crime of dishonesty, directly contradicting Alicia's claimed good character) should be admitted. The 2010 theft (conditional discharge, 16 years ago) is marginal — the court may sanitize or exclude it given its age and the technical question of whether a conditional discharge constitutes a conviction. A mandatory limiting instruction must be given: Alicia's criminal record may be used only to assess her credibility as a witness — it cannot be used to prove she committed the current offence.

QUESTION 4 OF 12

Primary Topic	Sexual Activity Evidence — Section 276 CC
Secondary Topics	Twin myths analysis, TWW 2024 SCC 19, s.276(2) three conditions, in camera procedure
Difficulty	Medium
Suggested Time	27 Minutes
Mark Value	15 Marks

FACT PATTERN

Tyler Marsh is charged with sexual assault (s.271 CC) arising from an allegation by Cassandra Lee. Cassandra alleges that Tyler sexually assaulted her at a party on March 8, 2025. Tyler and Cassandra had been in a consensual sexual relationship from October 2024 to January 2025, when Cassandra ended the relationship. Tyler has maintained that all sexual activity on March 8 was consensual.

At trial, the defence brings a s.276 CC application seeking to admit the following evidence:

(i) Evidence of the prior consensual sexual relationship between Tyler and Cassandra from October 2024 to January 2025, which defence counsel argues is relevant to Tyler's 'honest but mistaken belief in consent' defence.

(ii) Medical evidence showing that Cassandra had a pre-existing vaginal injury from an unrelated accident six weeks before the March 8 incident. Defence counsel argues this evidence is relevant to explain physical injuries documented by the examining nurse, which the Crown will use to corroborate Cassandra's account of force.

The Crown objects to both items on the basis of s.276 CC.

YOUR TASK:

Analyze whether the defence's s.276 application should be granted with respect to each item of evidence. Apply the current legal framework including R v TWW 2024 SCC 19. (15 marks)

EXAMINER'S GUIDE

Issues: Twin myths — s.276(1) exclusion; TWW 2024 two-step analysis (purpose → twin myth?); s.276(2) three conditions; in camera procedure; reasonable steps requirement.

Cases MUST cite: R v TWW 2024 SCC 19; R v Seaboyer [1991] 2 SCR 577; R v Reimer 2024 ONCA 519.

MODEL ANSWER — QUESTION 4

ISSUE

The issue is whether the defence's s.276 application should be granted with respect to: (i) the prior consensual sexual relationship; and (ii) the pre-existing vaginal injury medical evidence.

RULE

S.276(1) CC: Evidence of the complainant's sexual activity other than the subject matter of the charge is inadmissible to support the inference that: (a) by reason of its sexual nature, the complainant was more likely to have consented (the consent myth); or (b) by reason of its sexual nature, the complainant is less worthy of belief (the credibility myth).

R v TWW 2024 SCC 19: The court must first ask WHY the defence is offering this evidence. If the inference the defence draws runs through either twin myth → s.276(1) EXCLUDES it. If the relevance is based on a legitimate non-myth purpose → proceed to s.276(2).

S.276(2): Such evidence IS admissible if: (1) it relates to a specific instance of sexual activity; (2) it is relevant to a specific issue at trial other than through twin myth reasoning; (3) its probative value is not substantially outweighed by the danger of prejudice to the proper administration of justice.

Procedure: Written notice → in camera hearing → ruling specifying permitted purpose (R v Reimer 2024 ONCA 519).

APPLICATION — Item (i) — Prior Consensual Sexual Relationship

TWW STEP 1 — Twin Myth Analysis: The defence seeks to admit evidence of the prior consensual relationship between October 2024 and January 2025 in support of Tyler's honest but mistaken belief

in consent defence.

The inference the defence seeks to draw: Because Cassandra and Tyler had a prior consensual sexual relationship, Tyler's belief that she was consenting on March 8 was more reasonable or plausible.

Does this run through the consent myth? YES. The inference — 'she consented before, so my belief that she consented again was reasonable' — is precisely the consent myth that s.276(1)(a) prohibits. Prior sexual activity between parties does not make consent on a specific occasion more probable. *R v TWW* 2024 confirms: even where the sexual activity is between the accused and the complainant, s.276 applies and the twin myth analysis must be conducted.

Because the inference runs through the consent myth, s.276(1)(a) EXCLUDES this evidence. The defence cannot circumvent s.276 by framing the argument as 'honest but mistaken belief' — the underlying reasoning still relies on the prohibited inference.

APPLICATION — Item (ii) — Pre-Existing Vaginal Injury Medical Evidence

TWW STEP 1 — Twin Myth Analysis: The defence seeks to admit medical evidence that Cassandra had a pre-existing vaginal injury to explain physical injuries documented by the nurse.

The inference the defence seeks to draw: The documented physical injuries are not necessarily caused by the alleged sexual assault — they may be attributable to a pre-existing condition. This is offered to counter the Crown's use of physical injuries as corroboration of force.

Does this run through the consent myth? NO. The purpose is not to show Cassandra consented or is less credible. The purpose is to provide an ALTERNATIVE EXPLANATION for physical evidence that the Crown will use to establish that force was used. This is a legitimate non-myth purpose — explaining the source of physical injuries.

TWW STEP 2 — S.276(2) Three Conditions:

CONDITION 1 — Specific Instance: The pre-existing injury from 'an unrelated accident six weeks before' is a specific instance, not a general reference to sexual history. This condition is met.

CONDITION 2 — Relevant to a Specific Issue: The evidence is directly relevant to the specific issue of whether the documented physical injuries were caused by the alleged assault or by a pre-existing condition. This is a core factual issue the jury must resolve. The condition is met.

CONDITION 3 — PV Not Substantially Outweighed by Prejudice: The probative value of this evidence is high — it directly addresses physical evidence the Crown will rely on. The prejudice is minimal — this is medical evidence, not evidence of sexual promiscuity or character. The probative value is not substantially outweighed by prejudice. This condition is met.

CONCLUSION

Item (i) — Prior Consensual Relationship: The s.276 application is DENIED. Because the prior consensual relationship is being offered to support the inference that Tyler's belief in consent was reasonable — an inference that runs through the consent myth — s.276(1)(a) excludes it. *R v TWW* 2024 confirms this applies even where the sexual activity was between the accused and the complainant.

Item (ii) — Pre-Existing Injury Medical Evidence: The s.276 application is GRANTED. Because the pre-existing injury evidence is offered for a legitimate non-myth purpose (to explain physical injuries the Crown will use as corroboration) and all three s.276(2) conditions are satisfied, the evidence is admissible. The in camera procedure under s.276.2 CC must be followed (Reimer 2024). The ruling

must specify that this evidence may only be used to explain the physical injuries and not for any purpose relating to the complainant's consent or credibility.

QUESTION 5 OF 12

Primary Topic	Expert Opinion Evidence — Mohan, Abbey, and Independence
Secondary Topics	Lay opinion (Graat), oath-helping (J(JL)), novel science (Trochym), JN v CG 2023
Difficulty	Medium-Hard
Suggested Time	36 Minutes
Mark Value	20 Marks

FACT PATTERN

Nina Walters is charged with criminal negligence causing death arising from a car accident. The Crown alleges Nina was driving at 95 km/h in a 50 km/h zone when her vehicle struck and killed a cyclist.

At trial, the following expert evidence issues arise:

- (i) A bystander, Gerald Forbes, testifies that he was standing at a bus stop when the car 'flew past' him. The Crown asks: 'In your opinion, how fast was that car going?' Gerald states: 'It was going at least 90 to 100 kilometres per hour. I've been driving for 30 years — I know what a car going fast looks like.' The defence objects that Gerald is not a qualified expert.
- (ii) The Crown seeks to call Dr. Ingrid Sorensen, a traffic accident reconstruction specialist with 20 years of experience. Dr. Sorensen proposes to testify that, based on skid marks, vehicle damage, and witness accounts, the vehicle was travelling between 88 and 103 km/h at the moment of impact. She was retained by the Crown. In the course of cross-examination, it emerges that in her written report, Dr. Sorensen incorporated only the evidence supporting the Crown's theory and explicitly noted in her email to the Crown prosecutor: 'I've structured my analysis to support your position as strongly as possible.'
- (iii) Nina's defence counsel seeks to call Dr. Francis Kwan, a psychologist, to testify that Nina suffers from 'hypervision tunnel stress disorder' — a condition that Dr. Kwan claims causes drivers to severely underestimate their speed in stressful situations. Dr. Kwan is the only person who has published research on this condition. His two published papers appear in non-peer-reviewed journals. No other researchers have validated or replicated his findings.

YOUR TASK:

14. (a) Is Gerald Forbes's opinion evidence about the car's speed admissible? Apply the Graat framework. (5 marks)
15. (b) Should the trial judge admit Dr. Sorensen's accident reconstruction evidence? Address the Mohan test and the Abbey gatekeeper function. Is her independence a concern? (10 marks)
16. (c) Should the trial judge admit Dr. Kwan's evidence about 'hypervision tunnel stress disorder'? (5 marks)

EXAMINER'S GUIDE

Cases MUST cite: R v Mohan [1994] 2 SCR 9; R v Graat [1982] 2 SCR 819; R v Abbey 2009 ONCA 624; R v Trochym [2007] SCC 6; JN v CG 2023 ONCA 77.

MODEL ANSWER — QUESTION 5

Part (a) — Gerald Forbes's Speed Opinion (5 marks)

ISSUE

The issue is whether Gerald Forbes, as a lay witness, may give opinion evidence about the car's speed.

RULE

R v Graat [1982] 2 SCR 819: Lay opinion is admissible where: (1) rationally based on first-hand perception; (2) helpful to understanding the testimony or a fact in issue; (3) does not require specialized knowledge. Speed estimation by an observer is a classic composite observation — the 'composite observation' principle: when underlying facts cannot practically be separated from the overall impression, the lay opinion is admissible.

APPLICATION — Graat Analysis

CONDITION 1 — First-Hand Perception: Because Gerald was standing at the bus stop and personally observed the car pass, his opinion is based on direct perception — not speculation.

CONDITION 2 — Helpful: Because stating 'the car was going at least 90 to 100 km/h' conveys more useful information than trying to articulate every perceptual detail (engine noise, wind velocity, blur of the vehicle), the opinion helps the trier understand what Gerald perceived.

CONDITION 3 — No Specialized Knowledge Required: Speed estimation by a driver of 30 years is within ordinary human experience. Gerald need not be a traffic reconstruction expert. A lay observer's estimate of vehicle speed is admissible (Graat).

CONCLUSION

Gerald Forbes's opinion evidence IS admissible as lay opinion. All three Graat conditions are met. The defence objection fails. The trier of fact assigns appropriate weight — noting Gerald's 30 years of driving experience as relevant to the reliability of his estimate.

Part (b) — Dr. Sorensen's Accident Reconstruction Evidence (10 marks)

ISSUE

The issue is whether Dr. Sorensen's expert evidence is admissible under the Mohan test and whether her lack of independence requires exclusion under the Abbey gatekeeper function.

RULE

R v Mohan [1994] 2 SCR 9: Four-part test: (1) relevance; (2) necessity; (3) no exclusionary rule; (4) properly qualified expert.

R v Abbey 2009 ONCA 624: Even where Mohan is satisfied, the gatekeeper function requires exclusion where risks outweigh probative value — including lack of objectivity.

JN v CG 2023 ONCA 77: Expert witnesses have a primary duty to the COURT, not to the retaining

party. An expert who acts as an advocate — structuring analysis to support the retaining party's position — lacks the independence required of a court expert and may be excluded or given no weight.

APPLICATION — Mohan Four-Part Test

RELEVANCE: The speed of Nina's vehicle at impact is a central factual issue — directly relevant to criminal negligence. Relevance is established.

NECESSITY: Accident reconstruction based on physical evidence (skid marks, damage patterns) requires specialized knowledge beyond the experience of an ordinary jury. The necessity test is met.

NO EXCLUSIONARY RULE: No specific rule prevents the Crown from calling an accident reconstruction expert. This condition is met.

PROPERLY QUALIFIED: Dr. Sorensen has 20 years of experience in accident reconstruction and is a specialist in the field. Qualification is not in doubt.

APPLICATION — Abbey Gatekeeper — Independence Failure (JN v CG 2023)

Because Dr. Sorensen acknowledged in her email to the Crown that she 'structured her analysis to support your position as strongly as possible,' and because she incorporated only evidence supporting the Crown's theory while excluding contrary evidence, she has failed to meet the fundamental obligation of expert independence.

JN v CG 2023 ONCA 77: An expert's primary duty is to the court — to provide objective, unbiased assistance. An expert who acts as an advocate for the retaining party lacks the objectivity required of an expert witness and may be excluded entirely or given minimal weight.

Because Dr. Sorensen's report was deliberately structured as advocacy rather than objective scientific analysis, the trial judge should: (a) decline to admit the expert evidence entirely; OR (b) admit the evidence with a severe warning to the jury about the expert's demonstrated lack of objectivity. The former is the preferable remedy where the bias is systematic and permeates the entire report.

CONCLUSION

Dr. Sorensen's expert evidence satisfies the Mohan threshold but FAILS the Abbey gatekeeper function. Because Dr. Sorensen explicitly structured her analysis to support the Crown's position — demonstrating a lack of the objectivity and independence required of a court expert (JN v CG 2023) — the trial judge should exclude her evidence or give it no weight. The Crown should be permitted to call a different, independent accident reconstruction expert.

Part (c) — Dr. Kwan's Novel Syndrome Evidence (5 marks)

ISSUE

The issue is whether Dr. Kwan's evidence about 'hypervision tunnel stress disorder' is admissible.

RULE

R v Mohan [1994]: Necessity — must be outside the jury's knowledge. R v Trochym [2007] SCC 6: Novel science requires established reliability. Courts assess methodology, not just credentials. Expert evidence based on unvalidated methodology may be excluded.

APPLICATION — Mohan + Trochym — Novel Methodology

NECESSITY: If the condition is real and affects drivers' speed perception, it is outside the jury's ordinary experience. Necessity may be met.

RELIABILITY OF METHODOLOGY (Trochym): Because 'hypervision tunnel stress disorder' appears only in two non-peer-reviewed articles authored exclusively by Dr. Kwan himself, and because no other researchers have validated or replicated his findings, the methodology lacks the hallmarks of

established scientific reliability: peer review, replication, general acceptance in the relevant scientific community.

Trochym established that novel scientific theories must have established reliability before they can form the basis of expert testimony. The risk of unreliable methodology is that the jury may defer to the expert's false authority, accepting a novel and unvalidated diagnosis that substitutes for genuine analysis of how Nina drove.

CONCLUSION

Dr. Kwan's evidence is INADMISSIBLE. Because 'hypervision tunnel stress disorder' lacks established scientific reliability — it appears only in non-peer-reviewed articles by a single researcher with no independent replication or validation — the Mohan/Trochym methodology requirement is not met. Admitting this evidence would risk having the jury defer to a scientifically unsupported diagnosis, substituting junk science for genuine analysis. The trial judge should exclude the evidence under the Abbey gatekeeper function.

QUESTION 6 OF 12

Primary Topic	Privilege — SCP, Smith v Jones, Third-Party Records (s.278 CC)
Secondary Topics	Crime-fraud exception, public safety exception, McClure, Wigmore criteria
Difficulty	Hard
Suggested Time	36 Minutes
Mark Value	20 Marks

FACT PATTERN

Cameron Drake is charged with aggravated sexual assault (s.273 CC) against Lena Torres, a 22-year-old university student. The following privilege issues arise in the course of the proceedings:

- (i) The Crown seeks production of notes taken by Cameron's defence lawyer, Mila Sousa, during a consultation with Cameron in which he apparently described his plans for the evening in question. Mila objects on the basis of solicitor-client privilege. The Crown argues the crime-fraud exception applies because Cameron is alleged to have used the meeting to plan the assault.
- (ii) Cameron's defence counsel brings a s.278.1 CC application seeking production of Lena Torres's records from the Sexual Assault Crisis Centre (SACC) where Lena received counselling in the weeks following the assault. Defence counsel argues the records may contain statements by Lena inconsistent with her trial testimony, which would be relevant to her credibility.
- (iii) A journalist, Renata Volkov, was at a party near the alleged assault location and spoke extensively with witnesses before police arrived. Renata has refused to identify her sources. The Crown seeks to subpoena Renata to compel disclosure of the identity of a witness who allegedly told Renata that Lena was not assaulted.

YOUR TASK:

17. (a) Is Mila Sousa's consultation notes protected by solicitor-client privilege? Does the crime-fraud exception apply? (7 marks)
18. (b) Should the s.278 application for production of Lena's SACC counselling records be granted? Apply the bipartite test. (8 marks)

19. (c) Can Renata Volkov claim privilege over her journalistic source? Apply the Wigmore criteria. (5 marks)

EXAMINER'S GUIDE

Cases MUST cite: *R v McClure* [2001] 1 SCR 445; *Smith v Jones* [1999] 1 SCR 455; ss.278.1-278.91 CC; Wigmore four criteria.

MODEL ANSWER — QUESTION 6

Part (a) — SCP and Crime-Fraud Exception (7 marks)

ISSUE

The issue is whether Mila Sousa's consultation notes are protected by solicitor-client privilege and whether the crime-fraud exception removes that protection.

RULE

SCP is a near-absolute class privilege protecting confidential communications between a lawyer and client for the dominant purpose of obtaining legal advice. HOLDER: the client. DURATION: survives termination of the retainer.

CRIME-FRAUD EXCEPTION: SCP does not protect communications made IN FURTHERANCE of a crime or fraud. The client cannot use the professional relationship as a tool for criminal activity.

The crime-fraud exception requires that the communication itself was part of planning or facilitating the crime — not merely that the communication occurred before or after criminal conduct.

APPLICATION — SCP Established and Crime-Fraud Analysis

Because Cameron consulted Mila Sousa about legal matters in a professional capacity and the notes reflect confidential communications made in the context of that relationship, SCP *prima facie* applies. The Crown's bare allegation that Cameron 'apparently described his plans for the evening in question' does not, without more, establish the crime-fraud exception.

The crime-fraud exception requires that the communication itself was made in furtherance of a crime — not that it was about events leading up to a crime. If Cameron consulted Mila about a legal matter and happened to describe his plans (which later resulted in the assault), this does not necessarily mean the consultation was used to plan the crime.

For the crime-fraud exception to apply, the Crown would need to establish that Cameron sought Mila's assistance in planning the assault — for example, asking for advice on how to commit the assault without leaving evidence, or obtaining information to facilitate the crime. There is no such allegation here.

A court reviewing the notes in camera would be required to determine whether the specific content of the communication was in furtherance of the crime — a high threshold.

CONCLUSION

Mila Sousa's consultation notes are protected by SCP. The crime-fraud exception does not apply on these facts: the mere allegation that Cameron described the evening's events does not establish that the consultation was used to plan or facilitate the assault. The Crown's application for production should be denied.

Part (b) — Section 278 CC Application (8 marks)

ISSUE

The issue is whether the defence's s.278 CC application for production of Lena Torres's Sexual Assault Crisis Centre records should be granted.

RULE

Ss.278.1-278.91 CC: Records in sexual assault cases are produced only on a bipartite test: Stage 1 — Are the records likely relevant? Stage 2 — Does the salutary effect of production on the right to full answer and defence outweigh the deleterious effect on the complainant's right to privacy and equality (s.278.5(2))? The complainant has standing to participate in the in camera hearing.

APPLICATION — Stage 1 — Likely Relevance

Because defence counsel argues the SACC records may contain statements by Lena inconsistent with her trial testimony, and because such inconsistencies could be relevant to credibility — a central issue at trial — the likely relevance threshold may be met. However, 'likely relevant' is not established by speculation alone. The defence must identify a specific basis for believing such statements exist. Counselling records from a crisis centre are not automatically likely relevant merely because the complainant received counselling. The defence must point to a specific, identified issue at trial — here, credibility — and must demonstrate why these specific records, as opposed to other available sources, are likely to contain relevant material.

APPLICATION — Stage 2 — Balancing (s.278.5(2) Factors)

The trial judge must weigh: (a) Cameron's right to make full answer and defence; against (b) Lena's right to privacy in her therapeutic communications; (c) her right to personal security; and (d) her right to equality (the systemic chilling effect on sexual assault complainants from disclosure of therapeutic records).

SACC counselling records are among the most private of all records. They reflect vulnerable disclosures made in a therapeutic context where confidentiality is essential to the efficacy of treatment. Parliament enacted s.278 specifically to protect this category of record from routine disclosure in sexual assault cases.

The balance tips AGAINST production unless the defence can identify specific, concrete relevance beyond a general possibility of inconsistency. The defence's stated basis — that the records 'may' contain inconsistent statements — is speculative and insufficient to outweigh Lena's strong privacy interest.

CONCLUSION

The s.278 application should NOT be granted on these facts. Because the defence has identified only a speculative possibility that the records contain inconsistent statements — without a specific, concrete basis for this belief — the likely relevance threshold may not be met, and if met, the salutary effect of production does not outweigh the significant deleterious effect on Lena's privacy and equality rights in a therapeutic counselling context.

Part (c) — Journalist Source — Wigmore Criteria (5 marks)**ISSUE**

The issue is whether Renata Volkov can claim privilege over her journalistic source under the Wigmore case-by-case privilege framework.

RULE

WIGMORE FOUR CRITERIA: (1) Confidence of non-disclosure; (2) Confidentiality essential to the relationship; (3) The community ought to foster this relationship; (4) Injury from disclosure greater than

benefit gained for litigation.

APPLICATION — Wigmore Analysis

CRITERION 1 — Confidence: Because journalistic sources routinely provide information on the understanding it will remain confidential, and because the source chose to speak to Renata presumably on that basis, the first criterion is met.

CRITERION 2 — Essential to Relationship: Because sources will not provide information to journalists if they cannot rely on confidentiality being maintained, and because the loss of source protection would fundamentally undermine investigative journalism, the second criterion is met.

CRITERION 3 — Community Ought to Foster: Because investigative journalism serves a vital democratic function — exposing wrongdoing, informing the public, and holding powerful institutions accountable — the community has a strong interest in protecting journalist-source relationships. Courts have recognized this value. The third criterion is met.

CRITERION 4 — Injury vs Benefit: Here, disclosure would reveal the identity of a witness who allegedly told Renata that Lena was not assaulted — potentially important exculpatory evidence for Cameron. The benefit to the administration of justice (having potentially key evidence available) may outweigh the harm to the journalistic source relationship in this specific case. However, the court must also consider: Is there other evidence available? Is this the only way to obtain the information? Courts approach this pragmatically.

CONCLUSION

Criteria 1-3 of the Wigmore test are met, establishing a prima facie case for privilege. However, Criterion 4 requires careful balancing on the specific facts. Because the witness's account may be material exculpatory evidence in a serious criminal case, and if no other reasonable means exist to obtain this evidence, the balance may tip toward production despite the journalistic privilege. The trial judge must make this assessment on the specific record before the court — privilege may yield to the accused's right to make full answer and defence.

QUESTION 7 OF 12

Primary Topic	W(D) Framework + Credibility + Eyewitness Identification
Secondary Topics	Hibbert warning, Vetrovec, dock identification, no case to meet (Arcuri)
Difficulty	Medium
Suggested Time	36 Minutes
Mark Value	20 Marks

FACT PATTERN

Kwame Asante is charged with robbery (s.343 CC) of a convenience store. The robbery occurred at 10:15 PM on September 20, 2025. The store clerk, Fatima Noor, is the only eyewitness to the robber's identity. The robber wore a dark hoodie with the hood up and a surgical mask. The robbery lasted approximately 90 seconds.

Fatima's identification evidence: Immediately after calling 911, Fatima told the operator: 'He was a Black male, about 25-30, quite tall — maybe 6'1" or 6'2".' Two days later, a detective showed Fatima a photo array of six men. After viewing the array for three minutes, Fatima pointed to Kwame's photo and said: 'That one — I'm pretty sure that's him, but I couldn't swear to it.' Kwame was arrested. At trial, Fatima testifies: 'When I saw him in the courtroom, I was certain. That is the man who robbed me.'

Additional evidence: A jailhouse informant, Brandon Holt, testifies that Kwame told him while they were in the same cell: 'They've got nothing on me except that one clerk who barely saw my face.' Kwame denies making this statement. Brandon has two prior fraud convictions and received a sentence reduction in exchange for his testimony.

Kwame testifies that he was at his girlfriend's apartment from 9:00 PM until midnight on September 20, watching a movie. His girlfriend, Yolanda, corroborates this alibi. The Crown challenges Yolanda's reliability on cross-examination.

YOUR TASK:

20. (a) What warnings must the trial judge give the jury about Fatima Noor's identification evidence? Address the specific reliability factors on these facts. (8 marks)
21. (b) Must the trial judge give a Vetrovec warning about Brandon Holt's evidence? If so, what must the warning include? Is there sufficient confirmatory evidence? (7 marks)
22. (c) Apply the W(D) framework to the alibi evidence and determine whether Kwame should be convicted. (5 marks)

EXAMINER'S GUIDE

Cases MUST cite: R v Hibbert [2002] 2 SCR 445; R v Vetrovec [1982] 1 SCR 811; R v Brooks [2000] 1 SCR 237; R v W(D) [1991] 1 SCR 742.

MODEL ANSWER — QUESTION 7

Part (a) — Hibbert Warning — Eyewitness Identification (8 marks)

ISSUE

The issue is what specific warnings the trial judge must give regarding Fatima Noor's identification evidence, given the circumstances of this case.

RULE

R v Hibbert [2002] 2 SCR 445: Where eyewitness identification is central to the Crown's case, the trial judge MUST warn the jury of the specific dangers of eyewitness identification evidence. The warning must be tailored to the specific factors in the case that may have impaired reliability.

APPLICATION — Specific Reliability Factors — This Case

OPPORTUNITY TO OBSERVE: Because the robbery lasted approximately 90 seconds and the robber wore a hoodie with the hood up and a surgical mask, Fatima's opportunity to observe identifying features was severely limited. She could not see the robber's hair, facial structure, or much of his face. This is a critical reliability concern that the jury must specifically be warned about.

STRESS: Because Fatima was the victim of a robbery — a highly stressful event involving a direct threat — the well-documented 'weapon focus effect' may have directed her attention to the threat (the robbery itself, any weapon) rather than the robber's identifying features. Stress significantly impairs encoding of peripheral details such as facial features.

CROSS-RACIAL IDENTIFICATION: Because Fatima is not identified as being of the same race as Kwame (Kwame is identified as Black), cross-racial identification concerns arise. Research consistently shows that people are less accurate at identifying individuals of a different race. The jury

must be specifically warned about this factor if there is a cross-racial dimension.

PHOTO ARRAY — QUALIFIED IDENTIFICATION: Because Fatima's initial identification at the photo array was qualified — 'I'm pretty sure that's him, but I couldn't swear to it' — her confidence was LOW at the time of the identification. Yet by trial she claims certainty. This pattern — escalating confidence from the original identification to in-court testimony — is a classic red flag in identification evidence. The original statement of certainty level must be put before the jury.

DOCK IDENTIFICATION — INHERENTLY SUGGESTIVE: Because Fatima states she became 'certain' when she saw Kwame in the courtroom, this is a dock identification — inherently suggestive because Fatima knew the person in the dock was the accused. Dock identification adds almost nothing independent to the prior photo array identification. The jury must be told dock identification carries minimal weight as an independent identification.

CONCLUSION

The trial judge is REQUIRED to give the Hibbert warning. The warning must specifically identify: (1) limited opportunity to observe due to mask and hood; (2) stress impairment (weapon focus); (3) cross-racial identification concerns; (4) the qualified nature of the original photo array identification; (5) the escalating confidence from 'pretty sure' to 'certain' — inconsistent with reliable memory; (6) the minimal weight of dock identification. The jury must be told to scrutinize this evidence carefully before acting on it.

Part (b) — Vetrovec Warning (7 marks)

ISSUE

The issue is whether a Vetrovec warning is required for Brandon Holt's testimony and whether sufficient confirmatory evidence exists.

RULE

R v Vetrovec [1982]: Discretionary/mandatory warning for 'unsavoury' witnesses. **R v Brooks [2000]:** Mandatory where realistic concern jury might act on the evidence without independent confirmation. Warning must identify: (1) who the witness is and why their evidence is suspect; (2) the danger of acting on it alone; (3) what independent confirmatory evidence exists.

APPLICATION — Vetrovec Analysis

WHY BRANDON IS UNSAVOURY: Because Brandon Holt is a jailhouse informant — an inherently suspect category of witness — and because he received a sentence reduction in exchange for his testimony, and because he has two prior fraud convictions (crimes of dishonesty), his evidence is subject to serious suspicion. Jailhouse informants have a well-documented incentive to fabricate incriminating statements: the promise of reduced sentences in exchange for testimony. The jury must be warned of these specific risks.

IS THE WARNING MANDATORY? Because Brandon's testimony about Kwame's alleged jailhouse statement is potentially central to the Crown's case — it is essentially the only evidence aside from Fatima's identification that connects Kwame to the crime — there is a realistic concern the jury might act on it without independent confirmation. The Vetrovec warning is mandatory (Brooks).

CONFIRMATORY EVIDENCE: Confirmatory evidence must be: (a) independent of Brandon; (b) confirm a material part of Brandon's account; (c) connect the accused to the offence. Here: Fatima's identification is available but is itself unreliable (Hibbert concerns above). The identification evidence cannot serve as meaningful confirmatory evidence given the serious reliability concerns. There is no other independent evidence connecting Kwame to the robbery. The Crown should be warned that without additional confirmatory evidence, a conviction based on Brandon's testimony and Fatima's qualified identification may be vulnerable.

CONCLUSION

A Vetovec warning is MANDATORY. Brandon Holt is a jailhouse informant with a sentence reduction and prior fraud convictions — a classic unsavoury witness. The warning must identify Brandon's specific incentives to fabricate, the dangers of jailhouse informant evidence, and direct the jury to look for independent confirmation. On the current evidence, independent confirmatory evidence is thin — Fatima's identification is itself unreliable (Hibbert concerns). The jury must be told: do not convict on Brandon's evidence alone without independent confirmation of the material aspects of his account.

Part (c) — W(D) Framework (5 marks)**ISSUE**

Applying the W(D) framework, should Kwame be convicted?

RULE

R v W(D) [1991] 1 SCR 742: Three questions: (1) If the accused's evidence is believed → acquit. (2) If not believed but in doubt → acquit. (3) On evidence accepted → BARD established → convict.

APPLICATION — W(D) Application

QUESTION 1: Kwame testified he was at his girlfriend Yolanda's apartment from 9:00 PM to midnight. Yolanda corroborates this alibi. If the jury believes Kwame's alibi evidence — that he was not at the store at 10:15 PM — they must acquit. His alibi, if believed, is a complete answer to the charge.

QUESTION 2: Even if the jury does not fully believe Kwame's alibi (perhaps because Yolanda has a potential bias as his girlfriend), the alibi evidence may still leave the jury in reasonable doubt. A girlfriend's corroboration, while potentially biased, is not inherently worthless. If the jury is uncertain whether Kwame was at the store — even without fully believing the alibi — they must acquit.

QUESTION 3: Even setting aside Kwame's alibi entirely — on the Crown's evidence alone — is guilt established BARD? The Crown's case rests on: (a) Fatima's qualified and potentially unreliable identification (mask, hood, 90 seconds, 'pretty sure'); and (b) Brandon Holt's testimony (jailhouse informant, sentence reduction, two fraud convictions). Both pillars of the Crown's case are seriously undermined by the reliability concerns identified above. On the Crown's evidence alone, reasonable doubt exists.

CONCLUSION

Applying W(D), Kwame should be ACQUITTED. Questions 1 and 2 both produce reasonable doubt: the alibi evidence, if believed or if it leaves the jury in doubt, requires acquittal. Even on Question 3, the Crown's evidence — a qualified eyewitness identification under poor conditions and a jailhouse informant with a personal incentive — does not establish guilt BARD. Reasonable doubt exists at every stage of the W(D) analysis.

QUESTION 8 OF 12

Primary Topic	Civil Evidence — BOP, Adverse Inference, Prior Criminal Findings
Secondary Topics	FH v McDougall, res ipsa loquitur (Fontaine), Toronto v CUPE, adverse inference
Difficulty	Medium
Suggested Time	27 Minutes
Mark Value	15 Marks

FACT PATTERN

Adriana Reyes brings a civil action against the City of Burnfield and Police Constable Hector Nunez, alleging racial profiling, unlawful detention, and use of excessive force arising from a traffic stop on July 15, 2025. Adriana, a Black woman in her 30s, was stopped while driving a new BMW in a predominantly white residential area. She alleges that Constable Nunez stopped her without legal justification, subjected her to a 45-minute roadside detention, searched her vehicle without consent, and physically forced her arms behind her back when she objected, causing a shoulder injury requiring surgery.

Constable Nunez was subsequently charged criminally with assault causing bodily harm (s.267 CC) in connection with the physical altercation. Following a criminal trial, he was acquitted. The trial judge found that there was reasonable doubt about whether the force used was excessive.

At the civil trial:

- (i) The defendants argue that Constable Nunez's criminal acquittal establishes that no wrongdoing occurred and that the civil action should be dismissed.
- (ii) Constable Nunez does not testify at the civil trial. Adriana's counsel asks the court to draw an adverse inference from this failure.
- (iii) Adriana's expert witness, Dr. Kwame Asante (a criminologist specializing in racial bias in policing), seeks to testify about documented patterns of racial profiling in Canadian policing, and that the circumstances of Adriana's stop are consistent with racial profiling.

YOUR TASK:

23. (a) What standard of proof applies in this civil proceeding? Can the defendants rely on Constable Nunez's criminal acquittal to defeat Adriana's civil claim? (5 marks)
24. (b) Can the trial judge draw an adverse inference from Constable Nunez's failure to testify? What are the applicable principles? (4 marks)
25. (c) Is Dr. Asante's expert evidence on racial profiling admissible? What is the legal basis for admitting social context evidence in civil proceedings? (6 marks)

EXAMINER'S GUIDE

Cases MUST cite: *FH v McDougall* [2008] 3 SCR 41; *Toronto (City) v CUPE Local 79* [2003] SCC 63; *R v RDS* [1997] 3 SCR 484; *R v Mohan* [1994]; *R v Spence* [2005] SCC 71.

MODEL ANSWER — QUESTION 8**Part (a) — Standard of Proof + Prior Criminal Acquittal (5 marks)****ISSUE**

The issue is what standard of proof applies in this civil action and whether Constable Nunez's criminal acquittal defeats Adriana's civil claim.

RULE

FH v McDougall [2008] 3 SCR 41: The civil standard of proof is the BALANCE OF PROBABILITIES — one standard, regardless of the seriousness of the allegation. More serious or improbable allegations

require more cogent evidence, but the standard is BOP, not BARD.

Toronto (City) v CUPE Local 79 [2003] SCC 63: A criminal acquittal does NOT bind a civil court and does not prevent the civil court from finding, on BOP, that the same conduct occurred. Issue estoppel does not apply from criminal to civil proceedings in this direction.

APPLICATION — Standard and Prior Acquittal Analysis

STANDARD: Because this is a civil action by Adriana against Constable Nunez and the City, she must prove her case on the balance of probabilities. Because the allegations — racial profiling, unlawful detention, excessive force — are serious, the evidence required must be cogent and compelling, but the standard remains BOP, not BARD (FH v McDougall).

PRIOR CRIMINAL ACQUITTAL: Because the criminal trial applied the BARD standard and the civil trial applies the BOP standard, the two standards are fundamentally different. A reasonable doubt that Constable Nunez committed criminal assault does not establish that, on the balance of probabilities, he did not use excessive force. The jury's failure to be satisfied BARD is not inconsistent with the civil court finding, on BOP, that excessive force was used.

The defendants' argument — that the acquittal establishes no wrongdoing — is legally incorrect (Toronto v CUPE). The civil court starts fresh. It may hear all the evidence from the criminal trial and additional civil evidence, and reach its own conclusion on the balance of probabilities.

CONCLUSION

The civil standard is balance of probabilities (FH v McDougall). The criminal acquittal does NOT defeat the civil claim (Toronto v CUPE). The civil court must independently assess whether Adriana has established her claims on BOP — a much lower threshold than the BARD standard that produced the acquittal.

Part (b) — Adverse Inference (4 marks)

ISSUE

The issue is whether the trial judge can draw an adverse inference from Constable Nunez's failure to testify in the civil proceeding.

RULE

In CIVIL proceedings, a party's failure to testify — or failure to call a witness who would naturally be expected to testify — allows the trier of fact to draw an adverse inference that the testimony would have been unfavourable to that party. Unlike in criminal proceedings (where s.11(c) Charter prohibits adverse inferences from the accused's silence), there is NO Charter protection for civil defendants from such an inference.

APPLICATION — Adverse Inference Application

Because Constable Nunez is a named defendant — the central party whose conduct is in issue — his testimony about what happened during the stop would be expected and natural. He is the person best positioned to explain why he stopped Adriana, what he observed, and what force he used.

Because Constable Nunez chose not to testify in the civil proceeding, the trial judge is entitled to infer that his testimony would have been unfavourable to the defendants — specifically, that his explanation for the stop and the force used would not have supported the defence theory.

This is distinct from the criminal context: s.11(c) Charter prohibits adverse inferences from the accused's silence in criminal proceedings. Civil defendants do not have this protection.

CONCLUSION

The trial judge CAN draw an adverse inference from Constable Nunez's failure to testify. Because he

is the defendant whose conduct is directly at issue and whose testimony would naturally be expected, his silence in civil proceedings supports an adverse inference that his evidence would have been unfavourable to the defence.

Part (c) — Social Context Expert Evidence (6 marks)

ISSUE

The issue is whether Dr. Asante's expert evidence on racial profiling patterns in Canadian policing is admissible as social context / social framework evidence.

RULE

R v Mohan [1994] 2 SCR 9: Expert evidence must satisfy the four-part test (relevance, necessity, no exclusionary rule, properly qualified). 'Social framework evidence' — background context about social phenomena — is accepted where the jury lacks this context.

R v RDS [1997] 3 SCR 484: Courts may take account of systemic racial bias in policing and the justice system. Judicial awareness of documented social realities is not bias — it is proper contextual reasoning.

R v Spence [2005] SCC 71: Systemic racism in policing against racialized communities is a documented social reality. Expert evidence providing this framework assists the trier of fact in understanding the evidence in context.

APPLICATION — Social Framework Evidence Analysis

RELEVANCE: Whether Constable Nunez's conduct was motivated by racial profiling is directly relevant to the civil claim. Expert evidence on documented patterns of racial profiling in Canadian policing is relevant to help the trier of fact understand whether the circumstances of Adriana's stop are consistent with racial profiling.

NECESSITY: The dynamics of systemic racial profiling — how it manifests in policing practice, what indicators are present, how to distinguish profiling from legitimate policing — are outside the ordinary experience of a civil judge or jury. Expert assistance is genuinely necessary.

PROPERLY QUALIFIED: Dr. Asante is described as a criminologist specializing in racial bias in policing. Subject to confirmation of credentials at a qualification hearing, this expertise appears appropriate for social framework evidence on this specific issue.

NOT OATH-HELPING: Dr. Asante's evidence does not go to the credibility of Adriana or Constable Nunez. It provides a framework — that racial profiling is a documented phenomenon and that the circumstances here (Black woman driving expensive car in white neighbourhood, lengthy stop, physical force) are consistent with it. This assists the court without usurping the fact-finding function.

CONCLUSION

Dr. Asante's social framework evidence on racial profiling IS admissible. It satisfies the Mohan test: it is relevant to the racial profiling allegation, it is necessary (outside the jury's ordinary knowledge), there is no exclusionary rule, and Dr. Asante appears properly qualified. Social context evidence about documented patterns of racial bias in policing is an accepted basis for expert testimony in civil proceedings involving racial profiling claims (RDS; Spence). The evidence assists the court without usurping the fact-finding function.

QUESTION 9 OF 12

Primary Topic

Prior Inconsistent Statements — s.9 CEA, Browne v Dunn, Lyttle

Secondary Topics	Collateral fact rule, Cassibo limiting instruction, cross-examination rules
Difficulty	Medium
Suggested Time	36 Minutes
Mark Value	20 Marks

FACT PATTERN

Raymond Cho is charged with robbery. The Crown's key witness is his former business partner, Eddie Vasquez. Before trial, Eddie gave a signed written statement to police stating: 'Raymond told me he was planning to rob the store. He asked me to drive the getaway car. I refused and told him he was crazy.' At trial, Eddie testifies: 'Raymond never talked to me about any robbery. I have no idea what happened.' He denies making the prior statement.

The Crown applies to cross-examine Eddie under s.9 CEA. The judge grants the application. During cross-examination:

- (a) Crown counsel puts the prior statement to Eddie. Eddie continues to deny making it.
- (b) Crown counsel then shows Eddie the signed statement. Eddie states: 'That's my signature, but I must have signed something the police put in front of me. I was confused.' Eddie does not acknowledge the statement's accuracy.
- (c) Crown counsel then seeks to prove the prior statement by calling the detective who took the statement. The detective confirms it was made voluntarily, was read back to Eddie, and was signed by Eddie.

Separately, Raymond's defence counsel cross-examines Eddie on the following:

- (i) Defence counsel suggests: 'Isn't it true that you owe Raymond \$25,000 from a failed business deal, and you gave this police statement to get revenge?' Eddie denies it. Defence counsel then produces bank records showing a \$25,000 interparty transfer from Raymond to Eddie. Crown counsel objects that the cross-examination on the debt was improper without notice.
- (ii) Defence counsel asks Eddie: 'Isn't it true that you were charged with fraud in 2022?' Eddie says 'No.' Defence counsel then calls a witness to prove the fraud charge existed.

YOUR TASK:

26. (a) Explain the complete s.9 CEA procedure that should be followed, and assess whether the Crown may now prove the prior statement through the detective's testimony. For what purpose may the prior statement be used? (10 marks)
27. (b) With respect to the bias cross-examination (item i), has the defence violated the rule in *Browne v Dunn*? What is the correct analysis and what remedy should the court consider? (5 marks)
28. (c) With respect to the fraud charge cross-examination (item ii), is the defence entitled to call contradictory evidence after Eddie denied the charge? Apply the collateral fact rule. (5 marks)

EXAMINER'S GUIDE

Cases MUST cite: *R v Rose* [1991] ONCA; *R v Cassibo* [1982] ONCA; *R v B(KGB)* [1993]; *Browne v Dunn* (1893); *R v Lyttle* [2004] 1 SCR 193.

MODEL ANSWER — QUESTION 9

Part (a) — s.9 CEA Procedure and Use of Prior Statement (10 marks)

ISSUE

The issues are: (1) what s.9 CEA procedure applies; (2) whether the Crown may prove the prior statement through the detective; (3) for what purpose the prior statement may be used.

RULE

S.9 CEA: Where a party's own witness gives evidence materially inconsistent with a prior statement, the court may grant leave to cross-examine the witness on the prior statement. PROCEDURE (Rose): (1) voir dire — jury excused; judge reviews the prior statement; judge determines whether the witness is 'adverse'; (2) if leave granted: Crown may cross-examine on the prior statement; (3) if witness denies or does not recall: the prior statement may be PROVED (s.10 CEA) by tendering it.

USE OF PRIOR STATEMENT — Cassibo: A prior inconsistent statement elicited under s.9 goes to CREDIBILITY ONLY. The jury can use it to disbelieve Eddie but CANNOT use it as proof of the facts stated. MANDATORY LIMITING INSTRUCTION.

KGB: The prior statement is admissible for truth (not just credibility) ONLY if KGB conditions are met: (1) under oath; (2) videotaped; (3) witness available for cross-examination.

APPLICATION — s.9 Procedure on These Facts

VOIR DIRE: Because the Crown sought s.9 leave and the judge granted the application, the voir dire was conducted (correctly). The judge determined Eddie's current testimony is materially inconsistent with the prior statement — necessary for the 'adverse' finding.

CROSS-EXAMINATION ON STATEMENT: After leave was granted, Crown counsel put the prior statement to Eddie and showed it to him. Eddie denied accuracy. This is the correct procedure.

PROVING THE STATEMENT (s.10): Because Eddie denies making the statement accurately and does not acknowledge it, the Crown may PROVE the prior statement by tendering independent evidence of its making. Because the detective took the statement, confirmed it was made voluntarily, read back to Eddie, and signed by Eddie, this evidence is sufficient proof that the statement was made. The Crown may call the detective.

APPLICATION — Admissible Use — Credibility vs Truth

KGB CONDITIONS CHECK: The prior statement is a WRITTEN, SIGNED statement. Was it made under oath? The fact pattern states it was made to police — it was not made under oath or solemn affirmation. Was it videotaped? Not mentioned — we cannot assume it was. Accordingly, the KGB conditions are NOT met.

Because KGB conditions are not satisfied, the prior statement goes to CREDIBILITY ONLY (Cassibo). The jury can use Eddie's prior statement to assess whether he is a reliable witness — it shows that he has given inconsistent accounts. The jury CANNOT use the prior statement as proof that Raymond planned the robbery or that Eddie refused to participate. A mandatory Cassibo limiting instruction must be given.

CONCLUSION

The Crown may call the detective to prove the prior statement under s.10 CEA. Because Eddie denies making the statement accurately, proof of the statement is required. However, because the KGB conditions (oath + videotaping + cross-examination) are not satisfied — the statement was not made under oath and was not videotaped — the prior statement is admissible to CREDIBILITY ONLY. The jury must be instructed (Cassibo): the prior statement shows Eddie gave inconsistent accounts, which may be used to assess his reliability as a witness, but it CANNOT be used as proof that Raymond planned or committed the robbery.

Part (b) — Browne v Dunn — Bias Cross-Examination (5 marks)**ISSUE**

The issue is whether the defence violated the rule in *Browne v Dunn* by using the bank records to impeach Eddie on the debt after Eddie denied it.

RULE

Browne v Dunn (1893): If a party intends to contradict a witness's testimony, they must put the contradictory evidence to the witness in cross-examination, giving the witness a fair opportunity to explain or deny. *R v Lyttle* [2004]: Cross-examination suggestions require a good faith basis.

APPLICATION — Browne v Dunn Analysis

Because defence counsel put the suggestion to Eddie ('you owe Raymond \$25,000 from a failed business deal') and Eddie denied it, the rule in *Browne v Dunn* was addressed — Eddie had the opportunity to explain or deny the suggestion.

However, the Crown's objection appears to be about lack of NOTICE rather than failure to put the matter. *Browne v Dunn* does not necessarily require advance disclosure of the contradictory evidence — it requires that the contradiction be put to the witness. Because defence counsel DID put the suggestion to Eddie before producing the bank records, *Browne v Dunn* was technically complied with.

The Crown's concern may go to unfair surprise. Courts have discretion to order Eddie recalled or to allow Eddie to explain the bank records. Because the bank records showing the \$25,000 transfer provide a good faith basis for the defence's suggestion of bias (*Lyttle*), the cross-examination was proper.

CONCLUSION

The defence has not violated *Browne v Dunn* — the suggestion of the \$25,000 debt was put to Eddie, who had the opportunity to deny it. The bank records provide a good faith basis for the suggestion (*Lyttle*). The evidence of the debt is not collateral — it goes to Eddie's BIAS (a non-collateral exception), which is always a legitimate subject of cross-examination and contradictory evidence.

Part (c) — Collateral Fact Rule — Fraud Charge (5 marks)

ISSUE

The issue is whether the defence may call a witness to prove Eddie's prior fraud charge after Eddie denied it — or whether the collateral fact rule binds the defence to Eddie's answer.

RULE

THE COLLATERAL FACT RULE: On a collateral matter (relevant only to credibility, not a fact in issue), the cross-examiner is BOUND by the witness's answer — no contradictory evidence may be called. EXCEPTION: Criminal CONVICTIONS (not charges) may be proved under s.12 CEA if denied. Note: a charge alone (not a conviction) may be a collateral matter.

APPLICATION — Collateral Fact Rule — Fraud Charge

Whether Eddie was charged with fraud in 2022 is relevant only to his credibility (if convicted, it shows a history of dishonesty). It is not relevant to any material fact in issue in Raymond's robbery case.

CRITICAL DISTINCTION: The defence asked about a CHARGE, not a CONVICTION. Section 12 CEA permits cross-examination on PRIOR CONVICTIONS — not on charges or investigations. A charge that did not result in a conviction is not admissible as credibility evidence under s.12 CEA and is not relevant for any other purpose.

Because being charged (but apparently not convicted) of fraud is: (a) a collateral matter relevant only to credibility; and (b) not a conviction that qualifies under s.12 CEA, the collateral fact rule applies. The defence is bound by Eddie's denial. They CANNOT call a witness to prove the fraud charge.

existed.

CONCLUSION

The defence CANNOT call a witness to prove the fraud charge. Because the fraud charge (not conviction) is a collateral matter — relevant only to credibility and not a fact in issue — the collateral fact rule applies. The defence is bound by Eddie's denial. Note: even if the charge had resulted in a conviction, the defence would need to follow the s.12 CEA procedure. A bare criminal charge with no conviction has minimal probative value on credibility and is inadmissible under the collateral fact rule.

QUESTION 10 OF 12

Primary Topic	Witnesses — Competence, Compellability, Self-Incrimination
Secondary Topics	s.16.1 CEA (children), s.4 CEA (spousal), s.5 CEA (self-incrimination), s.13 Charter
Difficulty	Medium
Suggested Time	27 Minutes
Mark Value	15 Marks

FACT PATTERN

Derek Pryce is charged with assaulting his spouse, Margaret, and their neighbour, Leon Stone.

- (i) The Crown seeks to call Derek's daughter, Sophie, who is 7 years old and witnessed the assault on Margaret. Defence counsel objects that Sophie is too young and not a competent witness.
- (ii) The Crown also seeks to compel Margaret to testify against Derek. Margaret states she does not wish to testify against her husband. She is currently married to Derek.
- (iii) Leon Stone was called as a Crown witness. On the stand, he is asked: 'On the night in question, did you have any drugs in your vehicle?' Leon's lawyer, who is sitting in the gallery, stands up and says Leon should not have to answer because the answer might incriminate him.

YOUR TASK:

- 29. (a) Is Sophie competent to testify as a witness? What procedure must be followed? (5 marks)
- 30. (b) Is Margaret compellable to testify for the Crown against Derek? Analyze under s.4 CEA. (5 marks)
- 31. (c) Must Leon Stone answer the question about drugs in his vehicle? What protections does he have? (5 marks)

EXAMINER'S GUIDE

Cases/provisions MUST cite: s.16.1 CEA (children under 14); s.4 CEA (spousal competence/compellability); s.5 CEA (self-incrimination); s.13 Charter.

MODEL ANSWER — QUESTION 10

Part (a) — Sophie's Competence (s.16.1 CEA) (5 marks)**ISSUE**

The issue is whether Sophie, age 7, is competent to testify as a witness in a criminal proceeding.

RULE

S.16.1 CEA: Persons under 14 years of age do NOT take an oath or solemn affirmation. Instead, they are permitted to testify if they: (1) are able to UNDERSTAND AND RESPOND TO QUESTIONS; AND (2) PROMISE TO TELL THE TRUTH. A preliminary inquiry into competence is MANDATORY if competence is challenged. The inquiry assesses ability to understand and respond — NOT intelligence, memory, or likely reliability of testimony.

APPLICATION — s.16.1 Inquiry — Application

Because Sophie is 7 years old, s.16.1 CEA applies. She will not take an oath. The defence's objection triggers a mandatory preliminary inquiry. The judge must ask Sophie questions to determine: (1) Does Sophie understand what it means to tell the truth vs tell a lie? (2) Does Sophie understand she has a promise to tell the truth when testifying? (3) Can Sophie understand and respond to questions?

The inquiry does not require Sophie to be a brilliant or reliable witness — only that she can understand questions and answer them, and that she understands the obligation to tell the truth. Children as young as 5 or 6 have been found competent under s.16.1. If the judge is satisfied after the inquiry that both conditions are met, Sophie will be permitted to testify on a promise to tell the truth — without an oath.

CONCLUSION

Sophie may be competent to testify under s.16.1 CEA. A mandatory preliminary inquiry must be conducted by the trial judge. If Sophie can understand and respond to questions and promises to tell the truth, she is competent. The defence objection — that she is 'too young' — misstates the test: age alone does not determine competence under s.16.1. The inquiry must be conducted.

Part (b) — Margaret's Compellability (s.4 CEA) (5 marks)**ISSUE**

The issue is whether Margaret is compellable by the Crown to testify against her husband Derek.

RULE

S.4(2) CEA: The spouse of the accused is NOT COMPELLABLE by the Crown in criminal proceedings against the accused. S.4(4) EXCEPTION: The spouse IS compellable for the Crown where the charge involves: (a) an offence against the spouse (s.278.2 CC exceptions; also including assault of the spouse); (b) an offence against a child of the spouse or the accused; or (c) specified sexual offences. If compellable, the spouse is a fully compellable witness and subject to full cross-examination.

APPLICATION — s.4 Analysis on These Facts

Because Derek is charged with assaulting Margaret, and because s.4(4) CEA provides that the spousal non-compellability rule does NOT apply where the charge involves an offence against the spouse, the assault on Margaret is precisely the type of offence that engages the s.4(4) exception. Margaret IS compellable for the Crown on the charge relating to her own assault.

However, the charge of assaulting Leon Stone is a separate matter — it does not involve an offence against Margaret or her children. For the assault on Leon Stone, the s.4(4) exception does not apply,

and Margaret would normally not be compellable on that separate charge.

Practical note: Because Margaret is compellable on the assault-of-spouse charge, the Crown may call her. She cannot refuse to take the stand on that charge. If she refuses after being sworn or affirmed, she could be found in contempt of court. However, she may choose her evidence carefully once on the stand.

CONCLUSION

Margaret IS compellable by the Crown on the assault charge involving her as the victim — the s.4(4) exception applies because the charge involves an offence against the spouse. The Crown may compel her to testify on that charge. She cannot claim spousal non-compellability where she is herself the alleged victim. She is NOT compellable on the assault of Leon Stone under the s.4(4) exception, as that charge does not involve an offence against her or her children.

Part (c) — Leon Stone and s.5 CEA Self-Incrimination (5 marks)

ISSUE

The issue is whether Leon Stone must answer the question about drugs in his vehicle, and what protections exist against self-incrimination for a compelled witness.

RULE

S.5(1) CEA: A witness is COMPELLED to answer questions even where the answers may tend to incriminate them. A witness who is compellable CANNOT refuse to answer on grounds of self-incrimination.

S.5(2) CEA PROTECTION: If the witness objects to answering a question on self-incrimination grounds BEFORE answering, their testimony cannot be used against them in any subsequent criminal proceedings (except in a prosecution for perjury or giving contradictory evidence).

S.13 Charter: A witness who testifies in one proceeding cannot have that testimony used to incriminate them in another proceeding (except perjury). Parallel constitutional protection.

APPLICATION — s.5 CEA Application

Because Leon Stone is a compelled witness (not the accused), he CANNOT refuse to answer on the basis that the answer may incriminate him. S.5(1) compels witnesses to answer self-incriminating questions — the Crown may compel the answer.

However, because Leon's lawyer has raised the self-incrimination concern BEFORE Leon answers, s.5(2) CEA is properly invoked. If Leon now answers the question — 'Yes, I had drugs in my vehicle' — that answer CANNOT be used against Leon in any subsequent criminal proceeding for drug possession. The use immunity protects him.

Leon must answer, but his answer is protected from subsequent criminal use. The judge should inform Leon: 'You are required to answer this question. However, pursuant to s.5(2) of the Canada Evidence Act, your answer cannot be used against you in any subsequent criminal proceedings, except in a prosecution for perjury.' Leon should then answer.

CONCLUSION

Leon Stone MUST answer the question. S.5(1) CEA compels witnesses to answer even self-incriminating questions. However, because Leon's lawyer raised the self-incrimination objection before he answered, s.5(2) CEA applies: his answer is protected from subsequent criminal use (s.13 Charter provides parallel constitutional protection). Leon must answer, but his answer about having drugs in his vehicle cannot be used to charge him with drug possession in any subsequent proceeding.

QUESTION 11 OF 12

Primary Topic	Multi-Issue Criminal Evidence — Combined Question
Secondary Topics	Hearsay + Confessions + Charter + Character + Credibility (W(D))
Difficulty	Very Hard
Suggested Time	54 Minutes
Mark Value	30 Marks

FACT PATTERN

Victor Haines is charged with first-degree murder in the death of Roberto Fuentes. The following evidentiary issues arise at trial:

Issue 1 — The Prison Interview Statement: While remanded in custody awaiting trial, Victor was visited by Corrections Officer Chen, who told him: 'I know you didn't mean for things to go this far. If you tell me what really happened, I'll make sure the warden knows you cooperated — that goes a long way to where you're housed.' Victor then told Officer Chen: 'I didn't plan to kill him. We fought and I grabbed the kitchen knife. I didn't think he'd die.' No counsel was present. Victor was not re-advised of his Charter rights before the interview. This statement was videotaped by the institution's CCTV system (not for the purpose of recording the interview).

Issue 2 — The Deceased's Note: Roberto Fuentes sent a text message to his sister Elena two days before his death: 'Victor threatened to kill me if I don't pay him back the \$8,000 I owe him. I'm scared. If something happens to me, it was Victor.' Elena has produced the text messages to the Crown.

Issue 3 — Character Evidence: Victor testifies in his own defence, claiming the fight was spontaneous and in self-defence. During examination-in-chief, Victor's counsel asks: 'Victor, you've worked in youth mentorship programs for 10 years — how would you describe your character?' Victor responds: 'I'm a peaceful, caring person. I've dedicated my life to helping troubled youth. I've never been violent with anyone.' Victor's criminal record shows a conviction for assault causing bodily harm in 2019, for which he received a suspended sentence.

Issue 4 — The Self-Defence Claim: Victor testified as described above. Elena testifies for the Crown that Roberto told her Victor was aggressive and violent. Victor claims self-defence under s.34 CC.

YOUR TASK:

32. (a) Is Victor's statement to Officer Chen admissible? Address the confessions rule (Oickle), whether Officer Chen is a 'person in authority,' and any Charter issues. (10 marks)
33. (b) Is Roberto's text message to Elena admissible as hearsay? Analyze under the principled approach and all relevant exceptions. (8 marks)
34. (c) Has Victor put good character in issue? What evidence may the Crown now lead? What Corbett issues arise? (7 marks)
35. (d) Applying the W(D) framework, how should the trial judge instruct the jury on Victor's self-defence claim? (5 marks)

EXAMINER'S GUIDE

Cases MUST cite: R v Oickle [2000]; R v Grandinetti [2005]; R v Manninen [1987]; R v Khan [1990]; R v Khelawon [2006]; R v Smith [1992]; R v Handy [2002]; R v Corbett [1988]; R v McNamara (No.1) [1981]; R v W(D) [1991].

Time allocation: (a) 18 min | (b) 14 min | (c) 13 min | (d) 9 min.

MODEL ANSWER — QUESTION 11

Part (a) — Victor's Statement to Officer Chen (10 marks)

ISSUE

The issue is whether Victor's statement to Corrections Officer Chen is admissible under the common law confessions rule and the Charter.

RULE

Person in authority: A person the accused reasonably believes could affect their prosecution or treatment (Grandinetti [2005]). Corrections officers have authority over the accused's institutional placement — a condition of their detention.

Oickle four grounds: (1) inducements; (2) oppression; (3) operating mind; (4) police trickery. Crown must prove voluntariness BARD.

S.10(b) Charter: Police must re-advise of the right to counsel before questioning in post-charge custody context if circumstances change materially.

APPLICATION — Person in Authority

Because Officer Chen is a Corrections Officer who told Victor that cooperation 'goes a long way to where you're housed,' Victor would reasonably understand that Officer Chen has authority over his institutional conditions — his housing placement, privileges, and treatment. Victor's subjective belief that Officer Chen could affect his treatment is objectively reasonable on these facts. Officer Chen IS a person in authority (Grandinetti).

APPLICATION — Oickle Analysis — Inducement (Ground 1)

Because Officer Chen stated 'If you tell me what really happened, I'll make sure the warden knows you cooperated — that goes a long way to where you're housed,' this is an explicit quid pro quo: confess → better institutional placement. This is a direct inducement — a promise of benefit contingent on making a statement. Under Oickle Ground 1, would a reasonable person in Victor's circumstances (remanded in custody, subject to Officer Chen's authority over housing) feel compelled to speak to obtain the promised benefit? Yes. This inducement is sufficient to render the statement potentially involuntary.

APPLICATION — Charter — s.10(b)

Victor was not re-advise of his Charter rights before the interview. In a post-charge custodial interrogation context, where a person in authority initiates questioning, the Charter obligations apply. If Victor was not re-advise that he had the right to remain silent and the right to counsel before this interview, there is a s.10(b) violation.

Because no counsel was present and Victor was not reminded of his right to counsel before Officer Chen made the inducement and elicited the statement, there is a prima facie s.10(b) breach. Under Grant s.24(2): Line 1 — if this was a deliberate interrogation by a state actor (corrections officer), the violation is serious; Line 2 — the impact on Victor's right to choose whether to speak is significant; Line 3 — the statement about intent is central but was obtained through improper means. On balance, the statement is likely excluded under both the confessions rule and s.24(2).

CONCLUSION

Victor's statement is INADMISSIBLE. Officer Chen is a person in authority; the explicit inducement (housing benefit in exchange for confession) renders the statement involuntary under Oickle Ground 1; and the failure to re-advise Victor of his Charter rights before the custodial interrogation violates

s.10(b) Charter. The Grant s.24(2) analysis supports exclusion: the inducement by a state actor in a custodial setting is a serious violation with significant impact on Victor's protected interests.

Part (b) — Roberto's Text Message (8 marks)

ISSUE

The issue is whether Roberto's text message to Elena — identifying Victor as a threat and providing instructions for after his death — is admissible hearsay.

RULE

Hearsay: The message is an out-of-court statement by Roberto, tendered to prove the truth of its contents (that Victor threatened him and owed money).

Principled approach: Khan/Khelawon — necessity (Roberto is dead) + threshold reliability (procedural or substantive circumstances).

State of mind exception: Statements expressing then-existing mental state (fear) are admissible to prove that state of mind.

APPLICATION — Principled Approach + State of Mind

NECESSITY: Roberto is deceased. He cannot testify. Necessity is established.

STATE OF MIND: Roberto's statement 'I'm scared' expresses his then-existing emotional state (fear). This portion is admissible under the state of mind exception to prove Roberto feared Victor — relevant to the Crown's case about the nature of their relationship and Victor's alleged threat.

THRESHOLD RELIABILITY (SUBSTANTIVE): The message was sent two days before death — before any motive to fabricate a false accusation (Roberto could not have anticipated his death). The message is specific (naming Victor, naming the \$8,000 debt, naming the threat). It was sent to a family member — not to authorities — reducing the likelihood of strategic fabrication. Independent corroboration (the \$8,000 debt) may be available from other sources. These circumstances provide adequate substantive reliability.

ADMISSIBLE USE: (1) State of mind portion ('I'm scared') — admissible to prove Roberto's then-existing fear. (2) Assertion portions ('Victor threatened to kill me') — admissible under the principled approach for the truth of their contents, given necessity and threshold reliability. Limiting instruction: the jury should be aware the statement was not tested by cross-examination and should weigh it accordingly.

CONCLUSION

Roberto's text message IS admissible. Necessity is established (death). Threshold reliability is established through substantive grounds: spontaneous, specific, made before motive to fabricate existed, sent to family, corroborated by independent evidence of the debt. The state of mind portion (fear) is additionally admissible under the state of mind exception. The jury must weigh this evidence against the fact it was not subject to cross-examination.

Part (c) — Character Evidence: Door Opened + Corbett (7 marks)

ISSUE

The issues are: (1) has Victor put his good character in issue; (2) what rebuttal evidence may the Crown now lead; (3) what Corbett issues arise regarding Victor's criminal record.

RULE

Good character: When the accused adduces evidence of their good character, they open the door to Crown rebuttal (McNamara). Good character evidence serves two purposes: credibility (if accused testifies) and propensity (always available).

Corbett: Where the accused testifies and has a criminal record, Crown may cross-examine on the record under s.12 CEA. Trial judge exercises discretion based on Corbett factors.

APPLICATION — Good Character — Door Opened

Because Victor testified to his good character — 'I'm a peaceful, caring person' and 'I've never been violent with anyone' — and called his 10 years of youth mentorship as evidence of this character, Victor has put his good character in issue (McNamara).

CROWN REBUTTAL: Because Victor put good character in issue, the Crown may: (1) call reputation witnesses to testify to Victor's bad reputation for peacefulness in the community; (2) cross-examine Victor's character witnesses on specific incidents inconsistent with the claimed peacefulness. Victor's 2019 assault causing bodily harm conviction directly contradicts his claim of having 'never been violent with anyone.' The Crown is entitled to rebut this false impression.

APPLICATION — Corbett Application — 2019 Assault Conviction

Victor's 2019 assault causing bodily harm conviction is relevant under the Corbett framework. Factors: (a) Nature — assault is not a crime of dishonesty, so less probative of credibility as a witness; however, (b) Victor has specifically claimed to be a peaceful person who has 'never been violent' — the conviction directly contradicts this claim, making it highly relevant to his credibility; (c) Similarity to current charge — assault causing bodily harm is similar to the murder charge (both involve violence), which normally weighs toward exclusion due to propensity risk; (d) Age — 2019 is relatively recent (7 years).

However, the most important consideration: Victor has OPENED THE DOOR by making a specific false claim ('I've never been violent with anyone'). When an accused has deliberately created a false impression of their character, the balance in the Corbett discretion shifts strongly toward admission. The jury is entitled to know the conviction directly contradicts Victor's stated character. The judge should admit the conviction.

CONCLUSION

Victor put his good character in issue by testifying to his peaceful nature and claiming he has never been violent. The Crown may rebut by calling evidence of his reputation for violence and by cross-examining him on his 2019 assault conviction (Corbett). Because Victor created a specific false impression ('never been violent'), the Corbett discretion should favour admission of the conviction. A mandatory limiting instruction must be given: the record goes to credibility, not to propensity to have committed the murder.

Part (d) — W(D) Framework and Self-Defence (5 marks)

ISSUE

The issue is how the trial judge must instruct the jury on Victor's self-defence claim in light of the conflicting testimony.

RULE

R v W(D) [1991] 1 SCR 742: Three questions. The trial is not a credibility contest. Applied to defence evidence including third-party testimony capable of raising a reasonable doubt.

APPLICATION — W(D) — Applied to Self-Defence

QUESTION 1: If the jury believes Victor's account — that the fight was spontaneous, that Roberto initiated violence, and that Victor grabbed the knife in a reactive act of self-defence — they must

acquit. Specifically: if they believe Victor's account satisfies the s.34 CC elements (belief in force, defensive purpose, reasonable response), they must acquit.

QUESTION 2: Even if the jury does not fully believe Victor's account but is left in reasonable doubt by it — for example, if they cannot exclude the possibility that Roberto did threaten Victor physically — they must acquit. The burden is on the Crown to disprove self-defence BARD (s.34 CC).

QUESTION 3: Even setting aside Victor's evidence entirely, on the Crown's evidence alone (Roberto's text, the fight resulting in death), is premeditated first-degree murder established BARD? Roberto's text suggests an ongoing threat/dispute but does not establish that Victor planned and deliberated the specific killing. This goes to the first-degree/second-degree distinction.

CONCLUSION

The jury must be instructed on the W(D) framework and on self-defence under s.34 CC. If the jury believes Victor or is left in doubt by his account, they must acquit (or at minimum reduce the conviction to a lesser offence if they find an element is not proved). The Crown must disprove self-defence BARD. A W(D) direction is mandatory and must specifically address both Victor's own testimony and Elena's evidence, and how they interact in the overall assessment of whether the Crown has proved guilt beyond a reasonable doubt.

QUESTION 12 OF 12

Primary Topic	Full Civil Evidence — Racial Profiling Civil Action
Secondary Topics	BOP (McDougall), no W(D), adverse inference, s.5 CEA, business records, social framework evidence
Difficulty	Hard
Suggested Time	54 Minutes
Mark Value	30 Marks

FACT PATTERN

Yusuf Abdi, a 28-year-old Black man, brings a civil action against the Regional Police Service and Constable Diane Frost for battery, false imprisonment, and racial profiling arising from an incident on February 10, 2025.

Background: While walking through a shopping mall, Constable Frost stopped Yusuf and questioned him for 35 minutes. Frost told Yusuf she had received a report of a Black male in his 20s acting suspiciously near the electronics section. Yusuf had in fact been shopping for a laptop and had receipts. Frost refused to accept the receipts, accused Yusuf of having a 'hostile attitude,' and detained him until mall security confirmed he was not involved in any theft. A security officer's log records: '14:30: Mall officer reviewed situation with CPD constable. No theft occurred. Subject was clearly shopping. Released.' Frost wrote in her report: 'Subject was detained pending investigation. Cooperative investigation concluded with no charges.'

The following evidentiary issues arise in the civil trial:

- (i) Yusuf's counsel tenders Constable Frost's police report and the security officer's log as documentary evidence.
- (ii) Constable Frost does not testify at the civil trial. Her counsel argues she is not required to testify.
- (iii) Yusuf's expert, Dr. Fatima Hassan (a criminologist), proposes to testify about the prevalence of racial profiling in mall security and policing contexts.
- (iv) Yusuf himself testifies in a videotaped examination for discovery that he 'felt targeted from the

moment Frost approached' and that this was consistent with experiences he had had since childhood. The defendants seek to use his discovery evidence at trial.

YOUR TASK:

36. (a) What is the applicable standard of proof for Yusuf's racial profiling claim? Is there any heightened standard for a serious allegation against a police officer? (6 marks)
37. (b) Are Constable Frost's police report and the security officer's log admissible as documentary evidence? Apply the relevant rules. (8 marks)
38. (c) Can Yusuf's counsel invite the court to draw an adverse inference from Constable Frost's failure to testify? What is the effect of that inference? (6 marks)
39. (d) Is Dr. Hassan's expert evidence on racial profiling in policing admissible? What is the basis for admitting 'social framework evidence' in civil proceedings? (5 marks)
40. (e) How may the defendants use Yusuf's examination for discovery evidence at trial? (5 marks)

EXAMINER'S GUIDE

Cases MUST cite: *FH v McDougall* [2008] 3 SCR 41; s.30 CEA (business records); *R v Mohan* [1994]; *R v RDS* [1997]; *R v Spence* [2005]; *Toronto v CUPE* [2003]. Discovery evidence: provincial rules of civil procedure (examinations for discovery as admissions).

MODEL ANSWER — QUESTION 12

Part (a) — Standard of Proof (6 marks)

ISSUE

The issue is what standard of proof applies to Yusuf's racial profiling claim and whether any heightened standard applies given the seriousness of the allegations.

RULE

FH v McDougall [2008] 3 SCR 41: ONE civil standard — balance of probabilities. No heightened standard for serious allegations. However, the more serious or inherently improbable the allegation, the more cogent the evidence required to meet BOP. W(D) does NOT apply. Parties are compellable. Adverse inference available.

APPLICATION — Standard Application

Because this is a civil action by Yusuf against the Regional Police Service and Constable Frost, the standard is balance of probabilities throughout. Yusuf must prove each element of his claims (battery, false imprisonment, racial profiling) on BOP.

The defendants' argument that racial profiling is a 'serious allegation' requiring clearer proof is WRONG under *FH v McDougall*. There is no enhanced standard. However, because racial profiling is a serious allegation — accusing a police officer of unlawful discrimination — the evidence Yusuf leads must be sufficiently cogent to overcome the probability that the officer was acting lawfully. This is not a different standard — it reflects the logic that improbable events need more compelling evidence to be accepted as probable.

Polgrain Estate v Toronto East General Hospital [2008] ONCA 646: Confirmed that civil proceedings apply the BOP standard to serious allegations, including misconduct allegations against professionals.

CONCLUSION

The balance of probabilities standard applies to all aspects of Yusuf's claims. There is no heightened standard for allegations of police racial profiling (*FH v McDougall*). The allegations are serious and will require cogent evidence to establish on BOP — but this reflects the practical operation of the BOP standard for improbable events, not a different legal standard.

Part (b) — Documentary Evidence (8 marks)**ISSUE**

The issue is whether Constable Frost's police report and the security officer's log are admissible as documentary evidence.

RULE

S.30 CEA (Business Records): A record made in the ordinary course of business is admissible if: (1) made in the USUAL AND ORDINARY COURSE of business; (2) USUAL PRACTICE of that business to make such records; (3) made AT OR NEAR THE TIME of the events; (4) by a person with PERSONAL KNOWLEDGE. EXCEPTION: s.30(10) CEA — records made in the course of investigation into criminal or quasi-criminal matters are NOT admissible under s.30.

APPLICATION — Constable Frost's Police Report — s.30(10) Issue

Because Constable Frost's police report was made as part of a law enforcement investigation into suspected theft — a quasi-criminal matter — s.30(10) CEA applies. Police occurrence reports and investigation records made in the course of criminal/quasi-criminal investigations are excluded from the business records exception under s.30(10).

ALTERNATIVE BASIS: The police report may be admissible as a party admission. Because the Regional Police Service is a defendant and the police report was made by its officer, the contents of the report may be admissible against the defendants as vicarious admissions (statements by an agent acting within the scope of authority). Frost's own description of events — 'Subject was detained pending investigation. Cooperative investigation concluded with no charges' — is an express statement by Frost about the detention, admissible against the defendants on the adversarial principle.

The report is also potentially admissible under the principled approach — it is a document made contemporaneously with the events (reliability) and Frost is compellable (but chose not to testify). However, the most direct basis is the party admission route.

APPLICATION — Security Officer's Log

Because the security officer's log is a record made by mall security personnel in the ordinary course of their business of monitoring mall security — a standard private business activity, not a criminal investigation — s.30(10) CEA does NOT apply. The log: (1) was made in the usual course of security operations; (2) recording security incidents is the usual practice; (3) the entry was made at approximately 14:30, contemporaneous with the incident; (4) the security officer had personal knowledge (they personally reviewed the situation). All four s.30 conditions are met.

The security log entry — 'No theft occurred. Subject was clearly shopping. Released' — is admissible as a business record to prove its contents: that no theft occurred and that Yusuf was shopping. This directly corroborates Yusuf's account.

CONCLUSION

Constable Frost's police report is NOT admissible under s.30 CEA (s.30(10) exception — investigation record) but IS admissible as a party/vicarious admission against the defendants — Frost's own descriptions of the detention and investigation are statements by an agent acting within authority. The security officer's log IS admissible as a business record under s.30 CEA — all four

conditions are met and s.30(10) does not apply because it is a private business security record, not a criminal investigation record.

Part (c) — Adverse Inference (6 marks)

ISSUE

The issue is whether the court can draw an adverse inference from Constable Frost's failure to testify in the civil proceeding.

RULE

In civil proceedings, a party's failure to testify or call a witness whose evidence would be naturally expected allows the trier of fact to draw an adverse inference that the evidence would have been unfavourable. No Charter protection (s.11(c) Charter applies only to criminal proceedings).

APPLICATION — Adverse Inference — Application

Because Constable Frost is the named defendant who personally carried out the detention, she is the person most capable of explaining: (1) why she stopped Yusuf; (2) what specific behaviour led her to suspect him; (3) why she refused to accept his receipts; (4) why the detention lasted 35 minutes; (5) the basis for her description of him as having a 'hostile attitude.'

Because the entire factual dispute turns on Frost's state of mind and the basis for her decision-making — and because only she has direct knowledge of these matters — her testimony would naturally be expected. Her choice not to testify invites the adverse inference that her evidence would not have supported the defence theory.

THE INFERENCE: The court can infer that Constable Frost's explanation for the stop and detention would not have provided legitimate, non-discriminatory grounds — and may therefore infer that the stop was motivated by racial profiling rather than legitimate law enforcement grounds.

CONCLUSION

The court CAN draw an adverse inference from Constable Frost's failure to testify. Because she is the defendant whose state of mind and decision-making are central to the racial profiling claim, and because only she can directly explain her conduct, her silence supports the inference that her explanation would have been unfavourable to the defence. This adverse inference is a significant piece of evidence in favour of Yusuf's claim.

Part (d) — Dr. Hassan's Social Framework Evidence (5 marks)

ISSUE

The issue is whether Dr. Hassan's expert evidence on racial profiling in policing is admissible as social framework evidence.

RULE

Mohan four-part test. RDS [1997]: courts may take account of documented patterns of racial bias. Spence [2005]: systemic racism in policing against racialized communities is an established social fact. Social framework evidence provides background context that assists the trier of fact in understanding and evaluating the evidence.

APPLICATION — Social Framework Evidence Analysis

RELEVANCE: Whether Constable Frost's conduct was motivated by racial profiling requires the court to understand what racial profiling is, how it manifests, and whether the specific circumstances here are consistent with it. Dr. Hassan's evidence goes directly to this issue.

NECESSITY: The dynamics of racial profiling in policing — how it operates, what indicators are present, how it is documented in research — are outside the ordinary experience of a civil judge. Expert assistance is necessary.

NOT OATH-HELPING: Dr. Hassan's evidence does not assess the credibility of Yusuf or Constable Frost. It provides a factual framework — that racial profiling is documented, that it has specific manifestations, and that the circumstances of Yusuf's stop are consistent with those documented patterns. This assists the court without directing the verdict.

QUALIFIED: Dr. Hassan is a criminologist specializing in racial bias in policing. Subject to the standard qualification inquiry, this appears appropriate expertise for this specific opinion.

CONCLUSION

Dr. Hassan's social framework evidence IS admissible. The Mohan test is satisfied: the evidence is relevant to racial profiling, necessary (outside the judge's ordinary knowledge), there is no applicable exclusionary rule, and Dr. Hassan appears properly qualified. Social framework evidence about documented patterns of racial profiling in policing has been accepted by courts as a legitimate basis for expert testimony in racial profiling proceedings (RDS; Spence).

Part (e) — Yusuf's Discovery Evidence (5 marks)

ISSUE

The issue is how the defendants may use Yusuf's examination for discovery evidence at trial.

RULE

In civil proceedings, a party's answers on examination for discovery are admissible against that party as **ADMISSIONS** — the discovering party may read in the relevant passages at trial. A party may also use their own discovery evidence if the opposing party has put it to them (opening the door for context). Prior inconsistent statements from discovery can be used to cross-examine inconsistent trial testimony.

APPLICATION — Discovery Evidence — Application

Because Yusuf gave discovery evidence that he 'felt targeted from the moment Frost approached' and that this was 'consistent with experiences he had had since childhood,' the defendants may read this evidence into the record at trial as an admission — a party's own prior statements used against them.

POTENTIAL USE: The defendants may argue that Yusuf's statement about prior childhood experiences suggests a pre-existing sensitivity or perception of racial targeting that may affect the reliability of his account on this occasion. This could go to the weight of Yusuf's evidence about Frost's conduct.

HOWEVER — LIMITS: Yusuf's discovery evidence does not contradict his trial testimony — it is consistent with it (he 'felt targeted'). The defendants cannot use the discovery evidence to establish that Yusuf's perception was merely subjective or unfounded — the question is what Frost actually did, not what Yusuf felt. Prior consistent statements (discovery = trial testimony) generally support, not undermine, the witness's credibility.

BETTER USE — ADVERSE INFERENCE FROM DEFENDANTS: Conversely, if the defendants' discovery evidence contradicts their trial evidence, Yusuf may use it against them as prior inconsistent statements to impeach their credibility.

CONCLUSION

The defendants may tender Yusuf's examination for discovery evidence at trial as admissions.

Specifically, Yusuf's statement about feeling targeted is available for use. However, because this statement is consistent with his trial testimony, it does not serve as an effective impeachment tool. The primary value of the discovery evidence is contextual — it may be used by the defendants to argue Yusuf's perception was affected by prior experiences, and may be used by Yusuf to establish his consistent account predates trial. The defendants should focus their trial strategy on the objective evidence rather than attempting to undermine Yusuf's subjective account through discovery evidence.